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# THE SPY

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**STANDARD LITERATURE SERIES**

# THE SPY

BY

**J. FENIMORE COOPER**

**CONDENSED FOR USE IN SCHOOLS**

***WITH AN INTRODUCTION AND EXPLANATORY NOTES***



**NEW YORK AND NEW ORLEANS**

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# INTRODUCTION.

James Fenimore Cooper was born in Burlington, N. J., in 1789—the year in which George Washington was inaugurated first President of the United States. His boyhood was passed at Cooperstown, N. Y., a village founded by his father. After completing his studies at Yale, young Cooper entered the American navy as midshipman, subsequently obtaining the rank of lieutenant. He also made some voyages in a merchant vessel, and in this service acquired that knowledge of sea life of which he made good use in many of his novels.

Cooper has been styled the Walter Scott of America. It is hardly an exaggeration to rank him so high, for he has done for America what Scott did for Scotland: he has illustrated and popularized much of its history and many of its olden traditions in stories that will have appreciative readers so long as the English language is spoken. As a recent writer observes, he “wrote for men and women as well as for boys and girls,” and the best of his stories are “purely American, native born, and native bred.”

Another distinction must be assigned to Cooper, and it is a mark of high merit: he was the first American novelist who became widely known and esteemed in foreign countries. “The Spy” appeared in 1821—a time when American literature was in its infancy. Though but the second of the author’s works, it immediately became popular on both sides of the Atlantic. It was translated into several European languages, and may even, we are told, be read in the Persian tongue.

Other stories quickly followed. “The Pioneer” was published in 1822. This and “The Deerslayer,” “The Pathfinder,” “The Last of the Mohicans,” and “The Prairie” belong to the series known as the Leatherstocking Tales, so called from Leatherstocking Natty, the most celebrated of the characters introduced. These deal with life and adventure among the Indians, in description of which Cooper surpassed all other writers. The sea tales

include "The Pilot," published in 1823; "The Red Rover," in 1827; "The Waterwitch," in 1830; "The Two Admirals," in 1842, and "The Sea Lions," in 1849. Altogether, Cooper wrote thirty-three novels, many of them universally recognized as entitled to first rank in that field of literature, and all full of interest to the lover of romance.

In 1826 Cooper visited Europe, and remained for several years, continuing his literary work and producing, in addition to novels, some volumes of sketches of European society. He returned to America in 1833. His last book, "The Ways of the Hour," which deals with abuses of trial by jury, was published in 1850. He died on the 14th of September the following year at Cooperstown.

### **HISTORICAL NOTE.**

The events of the patriot Revolution afforded ample and excellent subject-matter for the genius of Cooper; and in "The Spy" he treats his material in a manner which has made the work a favorite with all lovers of fiction. The scene of the story is laid chiefly in that part of New York State lying immediately north and northeast of Manhattan Island. At the period referred to New York was held by the British, under command of Sir Henry Clinton, having been taken after the defeat of the Americans at the Battle of Long Island on August 27, 1776. At the same time the Americans possessed nearly all the rest of the State. The district lying between the British and the American lines, and extending over the greater part of Westchester County, was known as the "neutral ground." Here the principal events of the story are placed.

This district having then practically no government, the inhabitants suffered much, not only through the military operations of the hostile forces, but from bands of marauders known as "cowboys" and "skinners." The latter, professing to be supporters of the American cause, roamed over the neutral ground, robbing Tories (friends of the British) and others who refused to take an oath of fidelity to the new republic, while those consenting to take the oath were attacked and plundered by the cowboys, who carried on their depredations as British partisans.

The hero of "The Spy" is not altogether a fictitious character. In the introduction to one of the editions of the book the author tells us that he took the idea of Harvey Birch from a real person who was actually engaged in the secret service of the American Committee of Safety—a committee appointed by Congress to discover and defeat the various schemes projected by the Tories in conjunction with the British to aid the latter against the republican government. Spies were, of course, employed on both sides during the struggle, and it may readily be believed that among the patriot Americans there were many who were willing, without desire of earthly reward, not only to encounter hardships and danger to life for their country's cause, but to risk even loss of reputation, as Harvey Birch did.

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## THE SPY.

# CHAPTER I.

## A RURAL SCENE IN 1780.

It was near the close of the year 1780 that a solitary traveller was seen pursuing his way through one of the numerous little valleys of Westchester. The county of Westchester, after the British had obtained possession of the island of New York, became common ground, in which both parties continued to act for the remainder of the War of the Revolution. A large portion of its inhabitants, either restrained by their attachments or influenced by their fears, affected a neutrality they did not feel. The lower towns were, of course, more particularly under the domain of the crown, while the upper, finding a security from the vicinity of the Continental<sup>[1]</sup> troops, were bold in asserting their revolutionary opinions and their right to govern themselves. Great numbers, however, wore masks, which even to this day have not been thrown aside; and many an individual has gone down to the tomb stigmatized as a foe to the rights of his countrymen, while, in secret, he has been the useful agent of the leaders of the Revolution; and, on the other hand, could the hidden repositories of divers flaming patriots have been opened to the light of day, royal protections would have been discovered concealed under piles of British gold.

The passage of a stranger, with an appearance of somewhat doubtful character, and mounted on an animal which, although unfurnished with any of the ordinary trappings of war, partook largely of the bold and upright carriage that distinguished his rider, gave rise to many surmises<sup>[2]</sup> among the gazing inmates of the different habitations; and in some instances, where conscience was more than ordinarily awake, to a little alarm.

Tired with the exercise of a day of unusual fatigue, and anxious to obtain a speedy shelter from the increasing violence of the storm, that now began to change its character to large drops of driving rain, the traveller determined,

as a matter of necessity, to make an application for admission to the next dwelling that offered.

Sufficient light yet remained to enable the traveller to distinguish the improvements which had been made in the cultivation and in the general appearance of the grounds around the building to which he was now approaching. The house was of stone, long, low, and with a low wing at each extremity. A piazza, extending along the front, with neatly turned pillars of wood, together with the good order and preservation of the fences and out-buildings, gave the place an air altogether superior to the common farm-houses of the country. After leading his horse behind an angle of the wall, where it was in some degree protected from the wind and rain, the traveller threw his valise over his arm, and knocked loudly at the entrance of the building for admission. An aged black soon appeared, and without seeming to think it necessary, under the circumstances, to consult his superiors, first taking one prying look at the applicant by the light of the candle in his hand, he acceded to the request for accommodations. The traveller was shown into an extremely neat parlor, where a fire had been lighted to cheer the dulness of an easterly storm and an October evening. After giving the valise into the keeping of his civil attendant, and politely repeating the request to the old gentleman who rose to receive him, and paying his compliments to the three ladies who were seated at work with their needles, the stranger commenced laying aside some of the outer garments which he had worn in his ride.

After handing a glass of excellent Madeira to his guest, Mr. Wharton, for so was the owner of this retired estate called, resumed his seat by the fire, with another in his own hand. For a moment he paused, as if debating with his politeness, but at length he threw an inquiring glance on the stranger, as he inquired:

“To whose health am I to have the honor of drinking?”

The young ladies had again taken their seats beside the work-stand, while their aunt, Miss Jeanette Peyton, withdrew to superintend the preparations necessary to appease the hunger of their unexpected visitor.

The traveller had also seated himself, and he sat unconsciously gazing on the fire while Mr. Wharton spoke; turning his eyes slowly on his host with a look of close observation, he replied, while a faint tinge gathered on his features:

“Mr. Harper.”

“Mr. Harper,” resumed the other, with the formal precision of that day, “I have the honor to drink your health, and to hope you will sustain no injury from the rain to which you have been exposed.”

Mr. Harper bowed in silence to the compliment, and he soon resumed the meditations from which he had been interrupted, and for which the long ride he had that day made, in the wind, might seem a very natural apology.

Mr. Wharton had in vain endeavored to pierce the disguise of his guest’s political feelings. He arose and led the way into another room and to the supper-table. Mr. Harper offered his hand to Sarah Wharton, and they entered the room together; while Frances followed, greatly at a loss to know whether she had not wounded the feelings of her father’s inmate.

The storm began to rage in greater violence without, when a loud summons at the outer door again called the faithful black to the portal. In a minute the servant returned, and informed his master that another traveller, overtaken by the storm, desired to be admitted to the house for shelter through the night.

Some of the dishes were replaced by the orders of Miss Peyton, and the weather-beaten intruder was invited to partake of the remains of the repast, from which the party had just risen. Throwing aside a rough great-coat, he very composedly took the offered chair, and unceremoniously proceeded to allay the cravings of an appetite which appeared by no means delicate. But at every mouthful he would turn an unquiet eye on Harper, who studied his appearance with a closeness of investigation that was very embarrassing to its subject. At length, pouring out a glass of wine, the newcomer nodded significantly to his examiner, previously to swallowing the liquor, and said, with something of bitterness in his manner:

“I drink to our better acquaintance, sir; I believe this is the first time we have met, though your attention would seem to say otherwise.”

“I think we have never met before, sir,” replied Harper, with a slight smile on his features, rising and desiring to be shown to his place of rest. A small boy was directed to guide him to his room; and, wishing a courteous good-night to the whole party, the traveller withdrew. The knife and fork fell from the hands of the unwelcome intruder as the door closed on the retiring figure of Harper; he rose slowly from his seat; listening attentively, he approached the door of the room, opened it, seemed to attend to the retreating footsteps of the other, and, amidst the panic and astonishment of his companions, he closed it again. In an instant the red wig which concealed his black locks, the large patch which hid half his face from observation, the stoop that had made him appear fifty years of age, disappeared.

“My father, my dear father!” cried the handsome young man; “and you, my dearest sisters and aunt!—have I at last met you again?”

“Heaven bless you, my Henry, my son!” exclaimed the astonished but delighted parent; while his sisters sunk on his shoulders, dissolved in tears.

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## CHAPTER II.

### THE PEDDLER.

A storm below the highlands of the Hudson, if it be introduced with an easterly wind, seldom lasts less than two days. Accordingly, the inmates of the Locusts assembled on the following morning around their early breakfast, as the driving rain, seen to strike in nearly horizontal lines against the windows of the building, forbade the idea of exposing either man or beast to the tempest. Harper was the last to appear; after taking a view of the state of the weather, he apologized to Mr. Wharton for the necessity that existed for his trespassing on his goodness for a longer time. Henry Wharton had resumed his disguise with a reluctance amounting to disgust, but in obedience to the commands of his parent. No communications passed between him and the stranger after the first salutations of the morning.

While seated at the table, Cæsar entered, and laying a small parcel in silence by the side of his master, modestly retired behind his chair, where, placing one hand on its back, he continued, in an attitude half familiar, half respectful, a listener.

“What is this, Cæsar?” inquired Mr. Wharton, turning the bundle over to examine its envelope,<sup>[3]</sup> and eying it rather suspiciously.

“The ’baccy, sir; Harvey Birch, he got home, and he bring you a little good ’baccy from York.”

“Harvey Birch!” rejoined the master, with great deliberation, stealing a look at his guest. “I do not remember desiring him to purchase any tobacco for me; but as he has brought it, he must be paid for his trouble.”

Sarah Wharton bade the black show Birch into the apartment; when, suddenly recollecting herself, she turned to the traveller with an apologizing look, and added, “If Mr. Harper will excuse the presence of a peddler.”

Harvey Birch had been a peddler from his youth; at least, so he frequently asserted,<sup>[4]</sup> and his skill in the occupation went far to prove the truth of the declaration. He was a native of one of the Eastern colonies; and, from something of superior intelligence which belonged to his father, it was thought they had known better fortune in the land of their nativity. Harvey possessed, however, the common manners of the country, and was in no way distinguished from men of his class but by his acuteness,<sup>[5]</sup> and the mystery which enveloped his movements. Ten years before, they had arrived together in the vale, and, purchasing an humble dwelling, continued peaceful inhabitants, but little noticed and but little known. Until age and infirmities had prevented, the father devoted himself to the cultivation of the small spot of ground belonging to his purchase, while the son pursued with avidity<sup>[6]</sup> his humble barter. Their orderly quietude had soon given them so much consideration in the neighborhood as to induce a maiden (Katy Haynes by name) of five-and-thirty to forget the punctilio<sup>[7]</sup> of her sex, and to accept the office of presiding over their domestic comforts.

Harvey was in the frequent habit of paying mysterious visits in the depth of the night to the fire-place of the apartment that served for both kitchen and parlor. Here he was observed by Katy; and, availing herself of his absence and the occupation of the father, by removing one of the hearth-stones she discovered an iron pot, glittering with a metal that seldom fails to soften the hardest heart. Katy succeeded in replacing the stone without discovery, and never dared to trust herself with another visit.

In a few minutes after receiving the commands of his young mistress, Cæsar reappeared, ushering into the apartment a man above the middle height, spare, but full of bone and muscle. At first sight his strength seemed unequal to manage the unwieldy burden of his pack; yet he threw it on and off with great dexterity,<sup>[8]</sup> and with as much apparent ease as if it had been filled with feathers. His eyes were gray, sunken, restless, and, for the flitting moments that they dwelt on the countenance of those with whom he conversed, they seemed to read the very soul. They possessed, however, two distinct expressions, which in a great measure characterized the whole man. When engaged in traffic, the intelligence of his face appeared lively, active, and flexible, though uncommonly acute; if the conversation turned

on the ordinary transactions of life, his air became abstract and restless; but if, by chance, the revolution and the country were the topic, his whole system seemed altered—all his faculties were concentrated;<sup>[9]</sup> he would listen for a great length of time without speaking, and then would break silence by some light remark that was too much at variance with his former manner not to be affectation. But of the war and of his father he seldom spoke, and always from some obvious necessity. To a superficial<sup>[10]</sup> observer, avarice<sup>[11]</sup> would seem his ruling passion.

On entering the room the peddler relieved himself from his burden, which, as it stood on the door,<sup>[12]</sup> reached nearly to his shoulders, and saluted the family with modest civility. To Harper he made a silent bow, without lifting his eyes from the carpet; but the curtain prevented any notice of the presence of Captain Wharton. At length, Sarah, having selected several articles, observed in a cheerful voice:

“But, Harvey, you have told us no news. Has Lord Cornwallis beaten the rebels again?”

The question seemed not to have been heard, for the peddler, burying his body in the pack, brought forth a quantity of lace of exquisite<sup>[13]</sup> fineness, and, holding it up to view, he required the admiration of the young lady. Finding a reply was expected, he answered, slowly:

“There is some talk, below, about Tarleton<sup>[14]</sup> having defeated General Sumpter<sup>[15]</sup> on the Tiger River.”<sup>[16]</sup>

“Indeed!” cried the exulting Sarah; “Sumpter—Sumpter—who is he? I’ll not buy even a pin until you tell me all the news,” she continued, laughing and throwing down a muslin she had been examining.

For a moment the peddler hesitated; his eye glanced toward Harper, who was yet gazing at him with settled meaning, and the whole manner of Birch was altered. Approaching the fire, he took from his mouth a large allowance of the Virginian weed, and depositing it, with its juices, without mercy to Miss Peyton’s andirons,<sup>[17]</sup> he returned to his goods.

“He lives among the colored people in the south, and he has lately had a scrimmage with this Colonel Tarleton”—

“Who defeated him, of course?” cried Sarah, with confidence.

“So say the troops at Morrisania.”<sup>[18]</sup>

“But what do *you* say?” Mr. Wharton ventured to inquire, yet speaking in a low tone.

“I repeat but what I hear,” said Birch, offering a piece of cloth to the inspection of Sarah, who rejected it in silence, evidently determined to hear more before she made another purchase.

“They say, however, at the Plains,”<sup>[19]</sup> the peddler continued, first throwing his eyes again around the room and letting them rest for an instant on Harper, “that Sumpter and one or two more were all that were hurt, and that the rig’lars<sup>[20]</sup> were all cut to pieces, for the militia were fixed snugly in a log barn.”

“Not very probable,” said Sarah, contemptuously,<sup>[21]</sup> “though I make no doubt the rebels got behind the logs.”

“I think,” said the peddler, coolly, again offering the silk, “it’s quite ingenious to get a log between one and a gun, instead of getting between a gun and a log.”

The eyes of Harper dropped quietly on the pages of the volume in his hand, while Frances, rising, came forward with a smile on her face, as she inquired, in a tone of affability<sup>[22]</sup> that the peddler had never witnessed from the younger sister:

“Have you more of the lace, Mr. Birch?”

The desired article was produced, and Frances became a purchaser also.

“So it is thought that Colonel Tarleton has worsted General Sumpter?” said Mr. Wharton.

“I believe they think so at Morrisania,” said Birch, dryly.

“Have you any other news, friend?” asked Captain Wharton, venturing to thrust his face without the curtains.

“Have you heard that Major André<sup>[23]</sup> has been hanged?”

Captain Wharton started, and for a moment glances of great significance<sup>[24]</sup> were exchanged between him and the trader, when he observed, with affected indifference, “that it must have been some weeks ago.”

“Is there any probability of movements below, my friend, that will make travelling dangerous?” asked Harper, looking steadily at the other in expectation of his reply.

Some bunches of ribbon fell from the hands of Birch; his countenance changed instantly, losing its keen expression in intent meaning, as he answered slowly: “It is some time since the rig’lar cavalry were out, and I saw some of DeLancey’s<sup>[25]</sup> men cleaning their arms as I passed their quarters; it would be no wonder if they took the scent soon, for the Virginia horse are low in the county.”

“Are they in much force?” asked Mr. Wharton.

“I did not count them.”

Frances was the only observer of the change in the manner of Birch, and on turning to Harper, he had resumed his book in silence. She said, blushing with a color that suffused<sup>[26]</sup> her neck:

“I thought the Southern horse had marched towards the Delaware.”

“It may be so,” said Birch; “I passed the troop at a distance.”

Cæsar had now selected a piece of calico, in which the gaudy colors of yellow and red were contrasted on a white ground, and, after admiring it for several minutes, he laid it down with a sigh, as he exclaimed: “Berry pretty calico.”

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The party sat in silence for many minutes after the peddler had withdrawn, when the stranger suddenly broke it by saying:

“If any apprehensions<sup>[27]</sup> of me induce Captain Wharton to maintain his disguise, I wish him to be undeceived; had I motives for betraying him, they could not operate under present circumstances.”

The younger sister sank into her seat colorless and astonished. Miss Peyton dropped the tea-tray she was lifting from the table, and Sarah sat with her purchases unheeded in her lap, speechless with surprise. Mr. Wharton was stupefied; but the captain, hesitating a moment from astonishment, sprang into the middle of the room, and exclaimed, as he tore off the instruments of disguise:

“I believe you, from my soul, and this tiresome imposition shall continue no longer. Yet I am at a loss to conceive in what manner you should know me.”

“You really look so much better in your proper person, Captain Wharton,” said Harper, with a slight smile, “I would advise you never to conceal it in future. There is enough to betray you, if other sources of detection were wanting.” As he spoke, he pointed to a picture suspended over the mantelpiece, which exhibited the British officer in his regimentals.

“I had flattered myself,” cried young Wharton, with a laugh, “that I looked better on the canvas than in a masquerade. You must be a close observer, sir?”

“Necessity has made me one,” said Harper, rising from his seat.

Frances met him as he was about to withdraw, and, taking his hand between her own, said with earnestness, her cheeks mantling with the richest vermilion<sup>[28]</sup>: “You cannot—you will not betray my brother!”

For an instant Harper paused in silent admiration of the lovely pleader, and then, folding her hands on his breast, he replied solemnly: “I cannot, and I will not.” He released her hands, and laying his own on her head, gently,

continued: “If the blessing of a stranger can profit you, receive it.” He turned, and bowing low retired, with a delicacy that was duly appreciated by those he quitted, to his own apartment.

The whole party were deeply impressed with the ingenuous<sup>[29]</sup> and solemn manner of the traveller, and all but the father found immediate relief in his declaration.

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## CHAPTER III.

### THE STRANGER'S WARNING AND THE PEDDLER'S RETURN.

On the afternoon of the succeeding day, the party were assembled in the parlor around the tea-table of Miss Peyton, when a change in the weather occurred. The rushing winds had ceased, the pelting of the storm was over, and, springing to the window, Frances saw a glorious ray of sunshine lighting up the opposite wood. The foliage glittered with the checkered beauties of the October leaf, reflecting back from the moistened boughs the richest lustre of an American autumn. In an instant, the piazza, which opened to the south, was thronged with the inmates of the cottage. The air was mild, balmy, and refreshing; in the east, clouds, which might be likened to the retreating masses of a discomfited<sup>[30]</sup> army, hung around the horizon in awful and increasing darkness. At a little elevation above the cottage, the thin vapor was still rushing towards the east with amazing velocity; while in the west the sun had broken forth and shed his parting radiance on the scene below, aided by the fullest richness of a clear atmosphere and a freshened herbage.

“What a magnificent scene!” said Harper, in a low tone; “how grand! how awfully sublime! May such a quiet speedily await the struggle in which my country is engaged, and such a glorious evening follow the day of her adversity!”

“There can be no danger apprehended from such a man,” thought Frances; “such feelings belong only to the virtuous.”

The musings of the party were now interrupted by the sudden appearance of the peddler. “Fine evening,” he said, saluting the party, without raising his eyes; “quite warm and agreeable for the season.”

Mr. Wharton assented to the remark, and inquired kindly after the health of his father. Harvey answered with a slight tremor in his voice:

“He fails fast; old age and hardships will do their work.” The peddler turned his face from the view of most of the family, but Frances noticed his glistening eyes and quivering lips, and for the second time Harvey rose in her estimation.

The valley in which the residence of Mr. Wharton stood ran in a direction from northwest to southeast, and the house was placed on the side of a wall which terminated<sup>[31]</sup> its length in the former direction. A small opening, occasioned by the receding of the opposite hill, and the fall of the land to the level of the tide water, afforded a view of the Sound<sup>[32]</sup> over the tops of the distant woods on its margin. The surface of the water, which had so recently been lashing the shores with boisterous fury, was already losing its ruffled darkness in the long and regular undulations<sup>[33]</sup> that succeed a tempest, while the light air from the southwest was gently touching their summits, lending its feeble aid in stilling the waters. Some dark spots were now to be distinguished, occasionally rising into view, and again sinking behind the lengthened waves which interposed themselves to the sight. They were unnoticed by all but the peddler. He seated himself on the piazza, at a distance from Harper, and appeared to have forgotten the object of his visit. His roving eye, however, soon caught a glimpse of these new objects in the view, and springing up with alacrity<sup>[34]</sup> gazed intently towards the water. He changed his place, glanced his eye with marked uneasiness on Harper, and then said with great emphasis:

“The rig’lars must be out from below.”

“Why do you think so?” inquired Captain Wharton, eagerly. “God send it may be true; I want their escort in again.”

“Them ten whaleboats would not move so fast unless they were better manned than common.”

“Perhaps,” cried Mr. Wharton in alarm, “they are—they are Continentals returning from the island.”

“They look like rig’lars,” said the peddler, with meaning.

“Look!” repeated the captain, “there is nothing but spots to be seen.”

Harvey, disregarding his observation, said in an undertone, “They came out before the gale—have laid on the island these two days—horse are on the road—there will soon be fighting near us.” During this speech, Birch several times glanced towards Harper, with evident uneasiness, who stood in silent contemplation<sup>[35]</sup> of the view, and seemed enjoying the change in the air. As Birch concluded, however, Harper turned to his host, and mentioned that his business would not admit of unnecessary delay; he would, therefore, avail himself of the fine evening to ride a few miles on his journey. Mr. Wharton made many professions of regret, but was too mindful of his duty not to speed the parting guest, and orders were instantly given to that effect.

Every preparation being completed, Harper proceeded to take his leave. There was a mutual exchange of polite courtesy between the host and his parting guest; but as Harper frankly offered his hand to Captain Wharton, he remarked, in a manner of great solemnity:

“The step you have undertaken is one of much danger, and disagreeable consequences to yourself may result from it; in such a case, I may have it in my power to prove the gratitude I owe your family for its kindness.”

“Surely, sir,” cried the father, “you will keep secret the discovery which your being in my house has enabled you to make?”

Harper turned quickly to the speaker, and answered mildly, “I have learned nothing in your family, sir, of which I was ignorant before; but your son is safer from my knowledge of his visit than he would be without it.”

He bowed to the whole party, and without taking any notice of the peddler, other than by simply thanking him for his attentions, mounting his horse, and riding steadily and gracefully through the little gate, was soon lost behind the hill which sheltered the valley to the northward.

All the members of the Wharton family laid their heads on their pillows that night with a foreboding of some interruption to their ordinary quiet. Uneasiness kept the sisters from enjoying their usual repose, and they rose from their beds, on the following morning, unrefreshed and almost without having closed their eyes.

The family were already assembled around the breakfast table when the captain made his appearance, though the untasted coffee sufficiently proved that by none of his relatives was his absence disregarded.

“I think I did much better,” he cried, taking a chair between his sisters, and receiving their offered salutes, “to secure a good bed and such a plentiful breakfast, instead of trusting to the hospitality<sup>[36]</sup> of that renowned corps, the Cow-Boys.”

“If you could sleep,” said Sarah, “you were more fortunate than Frances and myself. Every murmur of the night air sounded to me like the approach of the rebel army.”

“Why,” said the captain, laughing, “I do acknowledge a little inquietude<sup>[37]</sup> myself. But how was it with you?” turning to his younger and evidently favorite sister, and tapping her cheek; “did you see banners in the clouds, and mistake Miss Peyton’s Æolian<sup>[38]</sup> harp for rebellious music?”

“Nay, Henry,” rejoined the maid, “much as I love my country, the approach of her troops just now would give me great pain.”

The brother made no reply; when Cæsar exclaimed, with a face that approached something like the hues of a white man:

“Run, Massa Harry, run—if he love old Cæsar, run. Here come a rebel horse.”

“Run!” repeated the British officer, gathering himself up in military pride; “no, Mr. Cæsar, running is not my trade.” While speaking, he walked deliberately to the window, where the family were already collected in the greatest consternation.<sup>[39]</sup>



# CHAPTER IV.

## CAPTAIN WHARTON'S CAPTURE.

At the distance of more than a mile about fifty dragoons were to be seen, winding down one of the lateral<sup>[40]</sup> entrances of the valley. In advance, with an officer, was a man attired in the dress of a countryman, who pointed in the direction of the cottage. A small party now left the main body and moved rapidly toward the object of their destination.

On reaching the road which led through the bottom of the valley, they turned their horses' heads to the north.

Reaching the dwelling of Birch, they made a rapid circle around his grounds, and in an instant his house was surrounded by a dozen sentinels.

Two or three of the dragoons now dismounted and disappeared; in a few minutes they returned to the yard, followed by Katy, from whose violent gesticulations<sup>[41]</sup> it was evident that matters of no trifling concern were on the carpet. A short communication with the housekeeper followed the arrival of the main body of the troop, and the advancing party remounting, the whole moved towards the Locusts with great speed.

As yet none of the family had sufficient presence of mind to devise any means of security for Captain Wharton; but the danger now became too pressing to admit of longer delay, and various means of secreting him were hastily proposed.

At length his sisters, with trembling hands, replaced his original disguise. This arrangement was hastily and imperfectly completed as the dragoons entered the lawn and orchard of the Locusts, riding with the rapidity of the wind; and in their turn the Whartons were surrounded.

The leader of the horse dismounted, and, followed by a couple of his men, he approached the outer door of the building, which was slowly opened for his admission by Cæsar.

A man, whose colossal<sup>[42]</sup> stature manifested the possession of vast strength, entered the room, and, removing his cap, he saluted the family with a mildness his appearance did not indicate as belonging to his nature. His dark hair hung around his brow in profusion, though stained with the powder that was worn at that day, and his face was nearly hid in the whiskers by which it was disfigured. Still the expression of his eye, though piercing, was not bad, and his voice, though deep and powerful, was far from unpleasant. Frances ventured to throw a timid glance at his figure as he entered, and saw at once the man from whose scrutiny Harvey Birch had warned them there was so much to be apprehended.

“You have no cause for alarm, ladies,” said the officer; “my business will be confined to a few questions, which, if freely answered, will instantly remove us from your dwelling.

“Has there been a strange gentleman staying with you during the storm?” continued the dragoon, speaking with interest.

“This gentleman—here—favored us with his company during the rain, and has not yet departed.”

“This gentleman!” repeated the other, turning to Captain Wharton. He approached the youth with an air of comic gravity, and, with a low bow, continued, “I am sorry for the severe cold you have in your head, sir.”

“I!” exclaimed the captain, in surprise; “I have no cold in my head.”

“I fancied it, then, from seeing you had covered such handsome black locks with that ugly old wig. It was my mistake; you will please to pardon it.”

Mr. Wharton groaned aloud; but the ladies, ignorant of the extent of the visitor’s knowledge, remained in trembling yet rigid silence. The captain himself moved his hand involuntarily to his head, and discovered that the trepidation of his sisters had left some of his natural hair exposed. The

dragoon watched the movement with a continued smile, when, seeming to recollect himself, turning to the father, he proceeded:

“Then, sir, I am to understand there has not been a Mr. Harper here within a week?”

“Mr. Harper,” echoed the other; “yes—I had forgotten; but he is gone, and if there be anything wrong in his character, we are in entire ignorance; to me he was a total stranger.”

“You have little to apprehend from his character,” answered the dragoon, dryly; “but he is gone—how, when, and whither?”

“He departed as he arrived,” said Mr. Wharton, gathering renewed confidence from the manner of the trooper, “on horseback last evening, and he took the northern road.”

The officer listened with intense interest, his countenance gradually lighting with a smile of pleasure, and the instant Mr. Wharton concluded his laconic<sup>[43]</sup> reply he turned on his heel and left the apartment. In a few moments orders were given to some of the troop, and horsemen left the valley, at full speed, by its various roads.

The suspense of the party within, who were all highly interested witnesses of this scene, was shortly terminated; for the heavy tread of the dragoon soon announced his second approach. He bowed again politely as he reëntered the room, and, walking up to Captain Wharton, said with mock gravity:

“Now, sir, my principal business being done, may I beg to examine the quality of that wig?”

The British officer imitated the manner of the other, as he deliberately uncovered his head, and handing the wig observed, “I hope, sir, it is to your liking.”

“I cannot, without violating the truth, say it is,” returned the dragoon; “I prefer your ebony hair, from which you seem to have combed the powder

with great industry. But that must have been a sad hurt you have received under this enormous black patch.”

“You appear such a close observer of things, that I should like your opinion of it, sir,” said Henry, removing the silk, and exhibiting the cheek free from blemish.

“Upon my word, you improve most rapidly in externals,” added the trooper; “if I could but persuade you to exchange this old surtout<sup>[44]</sup> for that handsome blue coat by your side, I think I never could witness a more agreeable metamorphosis,<sup>[45]</sup> since I was changed myself from a lieutenant to a captain.”

Young Wharton very composedly did as he was required, and stood an extremely handsome, well-dressed young man. The dragoon looked at him for a minute with the drollery that characterized his manner, and then continued:

“This is a newcomer in the scene; it is usual, you know, for strangers to be introduced; I am Captain Lawton, of the Virginia horse?”

“And I, sir, am Captain Wharton, of his Majesty’s Sixtieth regiment of foot,” returned Henry, bowing stiffly, and recovering his natural manner.

The countenance of Lawton changed instantly, and his assumed quaintness vanished. He viewed the figure of Captain Wharton, as he stood proudly swelling with a pride that disdained further concealment, and exclaimed with great earnestness:

“Captain Wharton, from my soul I pity you!”

“Oh, then,” cried the father, in agony, “if you pity him, dear sir, why molest him? He is not a spy; nothing but a desire to see his friends prompted him to venture so far from the regular army, in disguise. Leave him with us; there is no reward, no sum, which I will not cheerfully pay.”

“Sir, your anxiety for your friend excuses your language,” said Lawton, haughtily; “but you forget I am a Virginian, and a gentleman.” Turning to

the young man, he continued, “Were you ignorant, Captain Wharton, that our pickets have been below you for several days?”

“I did not know it until I reached them, and it was too late to retreat,” said Wharton, sullenly. “I came out, as father has mentioned, to see my friends, understanding your parties to be at Peekskill,<sup>[46]</sup> and near the Highlands, or surely I would not have ventured.”

“All this may be very true; but the affair of André has made us on the alert. When treason reaches the grade of general officers, Captain Wharton, it behooves<sup>[47]</sup> the friends of liberty to be vigilant.”

Henry bowed to this remark in distant silence, but Sarah ventured to urge something in behalf of her brother. The dragoon heard her politely, and answered mildly:

“I am not the commander of the party, madam; Major Dunwoodie will decide what must be done with your brother. At all events, he will receive nothing but kind and gentle treatment. May I presume so far as to ask leave to dismount and refresh my men, who compose a part of his squadron?”

There was a manner about the trooper that would have made the omission of such a request easily forgiven by Mr. Wharton; but he was fairly entrapped by his own eagerness to conciliate, and it was useless to withhold a consent which he thought would probably be extorted; he therefore made the most of necessity, and gave such orders as would facilitate<sup>[48]</sup> the wishes of Captain Lawton.

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## CHAPTER V.

### DUNWOODIE'S INVESTIGATION.

After sufficient time had passed to make a very comfortable meal, a trumpet suddenly broke on the ears of the party, sending its martial tones up the valley, in startling melody. The trooper rose instantly from the table, exclaiming:

“Quick, gentlemen, to your horses; there comes Dunwoodie;” and, followed by his officers, he precipitately<sup>[49]</sup> left the room.

With the exception of the sentinels left to guard Captain Wharton, the dragoons mounted, and marched out to meet their comrades.

In the advancing troop, one horseman seemed to be distinguished in particular from those around him. Even the steed of this youthful soldier seemed to be conscious that he sustained the weight of no common man. The dragoon sat in the saddle with a firmness and ease that showed him master of himself and horse, his figure uniting the just proportions of strength and activity, being tall, round, and muscular. To this officer Lawton made his report, and side by side they rode into the field opposite to the cottage.

The officer gave a few hasty orders to his second in command, walked rapidly into the lawn, and approached the cottage. The dragoon ascended the steps of the piazza, and had barely time to touch the outer door, when it opened to his admission.

Frances silently led the way into a vacant parlor, opposite to the one in which the family were assembled, and turning to the soldier frankly, placing both her hands in his own, exclaimed:

“Ah, Dunwoodie, how happy on many accounts I am to see you! I have brought you in here to prepare you to meet an unexpected friend in the opposite room.”

“To whatever cause it may be owing,” cried the youth, pressing her hands to his lips, “I, too, am happy in being able to see you alone. Frances, the probation<sup>[50]</sup> you have decreed is cruel; war and distance may separate us forever.”

“We must submit to the necessity which governs us. But it is not love speeches I would hear now: I have other and more important matter for your attention.”

“What can be of more importance than to make you mine by a tie that will be indissoluble!<sup>[51]</sup> Frances, you are cold to me—me—from whose mind, days of service and nights of alarm have never been able to banish your image for a single moment.”

“Dear Dunwoodie,” said Frances, softening nearly to tears, “you know my sentiments. This war once ended, and you may take my hand forever; but I cannot consent to tie myself to you by any closer union, so long as you are arrayed against my only brother. Even now, that brother is waiting your decision to restore him to liberty, or to conduct him to a probable death.”

“Your brother!” cried Dunwoodie, starting and turning pale; “Frances! what can I do?”

“Do!” she repeated, gazing at him wildly; “would Major Dunwoodie yield to his enemies his friend, the brother of his betrothed wife? Do you think I can throw myself into the arms of a man whose hands are stained with the blood of my only brother!”

“Frances, you wring my very heart; but, after all, we may be torturing ourselves with unnecessary fears, and Henry, when I know the circumstances, may be nothing more than a prisoner of war; in which case, I can liberate him on parole.”

Frances now led the way to the opposite room. Dunwoodie followed her reluctantly, and with forebodings of the result.

The salutations of the young men were cordial and frank, and, on the part of Henry Wharton, as collected as if nothing had occurred to disturb his self-possession.

After exchanging greetings with every member of the family, Major Dunwoodie beckoned to the sentinel to leave the room. Turning to Captain Wharton, he inquired mildly:

“Tell me, Henry, the circumstances of this disguise in which Captain Lawton reports you to have been found; and remember—remember—Captain Wharton, your answers are entirely voluntary.”

“The disguise was used by me, Major Dunwoodie,” replied the English officer, gravely, “to enable me to visit my friends without incurring the danger of becoming a prisoner of war.”

“But you did not wear it until you saw the troop of Lawton approaching?”

“Oh, no!” interrupted Frances, eagerly, “Sarah and myself placed them on him when the dragoons appeared; it was our awkwardness that led to the discovery.”

The countenance of Dunwoodie brightened, as, turning his eyes in fondness on the speaker, he listened to her explanation.

“Probably some articles of your own,” he continued, “which were at hand, and were used on the spur of the moment.”

“No,” said Wharton, with dignity; “the clothes were worn by me from the city; they were procured for the purpose to which they were applied, and I intended to use them again in my return this very day.”

“But the pickets—the party at the Plains?” added Dunwoodie, turning pale.

“I passed them, too, in disguise. I made use of this pass, for which I paid; and, as it bears the name of Washington, I presume it is forged.”

Dunwoodie caught the paper eagerly, and stood gazing on the signature for some time in silence, during which the soldier gradually prevailed over the man; then he turned to the prisoner with a searching look, as he asked:

“Captain Wharton, whence did you procure this paper?”

“This is a question, I conceive, Major Dunwoodie has no right to ask.”

“Your pardon, sir; my feelings may have led me into an impropriety. This name is no counterfeit. Captain Wharton, my duty will not suffer me to grant you a parole; you must accompany me to the Highlands.”

“I did not expect otherwise, Major Dunwoodie.”

“Major Dunwoodie,” said Frances, “I have already acknowledged to you my esteem; I have promised, Dunwoodie, when peace shall be restored to our country, to become your wife; give my brother his liberty on parole, and I will this day go with you to the altar, follow you to the camp, and, in becoming a soldier’s bride, learn to endure a soldier’s privations.”

Dunwoodie seized the hand which the blushing girl extended towards him, and pressed it for a moment to his bosom; he paced the room in excessive agitation.

“Frances, say no more, I conjure you, unless you wish to break my heart.”

“Then you reject my proffered hand?” she said, rising with dignity.

“Reject it! Have I not sought it with entreaties, with tears? But to take it under such conditions would be to dishonor both. Henry must be acquitted; perhaps not tried. No intercession of mine shall be wanting, you must well know; and believe me, Frances, I am not without favor with Washington.”

“That paper, that abuse of his confidence, will steel him to my brother’s case. If threats or entreaties could move his stern sense of justice, would André have suffered?” As Frances uttered these words, she fled from the room in despair.

Dunwoodie remained for a minute nearly stupefied; and then he followed with a view to vindicate<sup>[52]</sup> himself, and to relieve her apprehensions. On

entering the hall that divided the two parlors, he was met by a ragged boy, who looked one moment at his dress, and placing a piece of paper in his hands, immediately vanished through the outer door of the building. The soldier turned his eyes to the subject of the note. It was written on a piece of torn and soiled paper, and in a hand barely legible; but, after much labor, he was able to make out as follows:

“The rig’lars are at hand, horse and foot.”

Dunwoodie started; and, forgetting everything but the duties of a soldier, he precipitately left the house. While walking rapidly towards the troops, he noticed on a distant hill a vidette<sup>[53]</sup> riding with speed; several pistols were fired in quick succession, and the next instant the trumpets of the corps rang in his ears with the enlivening strain of “To arms.” By this time he had reached the ground occupied by his squadron; the major saw that every man was in active motion. Lawton was already in the saddle, eying the opposite extremity of the valley with the eagerness of expectation.

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## CHAPTER VI.

### THE SKIRMISH AND ESCAPE OF CAPTAIN WHARTON.

The videttes and patrols now came pouring in, each making in succession his hasty report to the commanding officer, who gave his orders coolly and with a promptitude that made obedience certain.

Major Dunwoodie had received from his scouts all the intelligence concerning the foe which was necessary to enable him to make his arrangements. The bottom of the valley was an even plain, that fell with a slight inclination from the foot of the hills on either side to the level of a natural meadow that wound through the country on the banks of a small stream. This brook was easily forded, and the only impediment it offered to the movements of the horse was in a place where its banks were more steep and difficult of access than common. Here the highway crossed it by a rough wooden bridge.

The hills on the eastern side of the valley were abrupt, and frequently obtruded themselves in rocky prominences into its bosom. One of these projections was but a short distance in the rear of the squadron of dragoons, and Dunwoodie directed Captain Lawton to withdraw with two troops behind its cover. Dunwoodie knew his man, and had selected the captain for this service both because he feared his precipitation in the field, and knew, when needed, his support would never fail to appear. On the left of the ground on which Dunwoodie intended to meet his foe was a close wood, which skirted that side of the valley for the distance of a mile. Into this, then, the guides retired, and took their station near its edge, in such a manner as would enable them to maintain a scattering but effectual fire on the advancing column of the enemy.

Dunwoodie's men now sat panting to be led once more against foes whom they seldom charged in vain. A few minutes enabled the major to

distinguish their character. In one troop he saw the green coats of the Cow-Boys and in the other the leathern helmets and wooden saddles of the yagers.<sup>[54]</sup> Their numbers were about equal to the body under his immediate orders.

On reaching the open space near the cottage of Harvey Birch, the enemy halted and drew up his men in line, evidently making preparations for a charge. At this moment a column of foot appeared in the vale, and pressed forward to the bank of the brook we have already mentioned.

Major Dunwoodie at once saw his advantage, and determined to profit by it. The column he led began slowly to retire from the field, when the youthful German who commanded the enemy's horse, fearful of missing an easy conquest, gave the word to charge. The Cow-Boys sprang eagerly forward in the pursuit; the Hessians followed more slowly, but in better order. The trumpets of the Virginians now sounded long and lively; they were answered by a strain from the party in ambush that went to the hearts of their enemies. The column of Dunwoodie wheeled in perfect order, opened, and, as the word of charge was given, the troops of Lawton emerged from their cover, with their leader in advance, waving his sabre over his head, and shouting in a voice that was heard above the clamor of the martial music.

The charge threatened too much for the refugee troop. They scattered in every direction, flying from the field as fast as their horses could carry them. It was upon the poor vassals of the German tyrant that the shock fell. Many of them were literally ridden down, and Dunwoodie soon saw the field without an opposing foe.

Captain Wharton had been left in the keeping of two dragoons, one of whom marched to and fro on the piazza with a measured tread, and the other had been directed to continue in the same apartment with the prisoner.

The lawn in front of the Locusts was hidden from the road by a line of shrubbery, and the horses of the two dragoons had been left under its shelter to await the movements of their masters.

At this moment two Cow-Boys, who had been cut off from a retreat to their own party, rode furiously through the gate, with an intention of escaping to the open wood in the rear of the cottage. Feeling themselves in the privacy of the lawn, relieved from any immediate danger, they yielded to a temptation that few of the corps were ever known to resist—opportunity and horseflesh—and made towards their intended prizes by an almost spontaneous movement. They were busily engaged in separating the fastenings of the horses, when the trooper on the piazza discharged his pistols, and rushed, sword in hand, to the rescue.

This drew the wary dragoon in the parlor to the window.

He threw his body out of the building, and with dreadful imprecations endeavored by threats and appearance to frighten the marauders from their prey. The moment was enticing. Three hundred of his comrades were within a mile of the cottage; unriden horses were running at large in every direction, and Henry Wharton seized the unconscious sentinel by his legs and threw him headlong into the lawn. Cæsar vanished from the room, and drew a bolt of the outer door.

Recovering his feet, the sentinel turned his fury for a moment on his prisoner. To scale the window in the face of such an enemy, was, however, impossible, and on trial he found the main entrance barred.

His comrade now called loudly upon him for aid, and forgetting everything else, the discomfited trooper rushed to his assistance. One horse was instantly liberated, but the other was already fastened to the saddle of a Cow-Boy, and the four retired behind the building, cutting furiously at each other with their sabres, and making the air resound with their imprecations. Cæsar threw the outer door open, and pointing to the remaining horse, that was quietly biting the faded herbage of the lawn, he exclaimed:

“Run, now, run—Massa Harry, run!”

“Yes,” cried the youth, as he vaulted into the saddle, “now indeed, my honest fellow, is the time to run.”

When the fortune of the day was decided, and the time arrived for the burial of the dead, two Cow-Boys and a Virginian were found in the rear of the Locusts, to be included in the number.

Wharton's horse was of the best Virginian blood, and carried him with the swiftness of the wind along the valley; and the heart of the youth was already beating tumultuously with pleasure of his deliverance, when a well-known voice reached his startled ear, crying loudly:

"Bravely done, captain! Don't spare the whip, and turn to your left before you cross the brook."

Wharton turned his head in surprise, and saw, sitting on the point of a jutting rock that commanded a bird's-eye view of the valley, his former guide, Harvey Birch. The English captain took the advice of this mysterious being, and finding a good road which led to the highway that intersected the valley, turned down its direction, and was soon opposite to his friends. The next minute he crossed the bridge, and stopped his charger before his old acquaintance, Colonel Wellmere.

"Captain Wharton!" exclaimed the astonished commander of the English troops.

"Thank God!" cried the youth, recovering his breath, "I am safe, and have escaped from the hands of my enemies."

The captain briefly explained to the group of listeners the manner of his capture, the grounds of his personal apprehensions, and the method of his escape. By the time he had concluded his narration, the fugitive Germans were collected in the rear of the column of infantry, and Colonel Wellmere cried aloud:

"From my soul I congratulate you, my brave friend; prepare yourself to grant me your assistance, and I will soon afford you a noble revenge."

"I do not think it altogether prudent to cross this brook into the open plain, in the face of those Virginian horse, flushed as they must be with the success they have just obtained," returned young Wharton.

“Do you call the rout of those irregulars and these sluggish Hessians a deed to boast of?” said the other.

“And I must be allowed to say, Colonel Wellmere, that if the body-guards of my king were in yon field, they would meet a foe that it would be dangerous to despise. Sir, Mr. Dunwoodie is the pride of Washington’s army as a cavalry officer,” cried Henry, with warmth.

Colonel Wellmere inquired with a supercilious<sup>[55]</sup> smile:

“You would not have us retire, sir, before these boasted horsemen, without doing something that may deprive them of part of the glory which you appear to think they have gained?”

“I would have you advised, Colonel Wellmere, of the danger you are about to encounter.”

“Danger is but an unseemly word for a soldier,” continued the British commander, with a sneer.

“And one as little dreaded by the 60th as any corps who wear the royal livery,” cried Henry Wharton, fiercely; “give but the word to charge, and let our actions speak.”

“Now again I know my friend,” cried Wellmere, soothingly; “but if you have anything to say before we fight that can in any manner help us in our attack, we’ll listen. You know the force of the rebels; are there more of them in ambush?”

“Yes,” replied the youth, chafing still under the other’s sneers; “in the skirt of the wood on our right are a small party of foot; their horse are all before you.”

“Where they will not continue long,” cried Wellmere, turning to the few officers around him. “Gentlemen, we will cross the stream in column and display on the plain beyond, or else we shall not be able to entice these valiant Yankees within the reach of our muskets. Captain Wharton, I claim your assistance as an aide-de-camp.”

The youth shook his head in disapprobation of a movement which his good sense taught him was rash, but prepared with alacrity to perform his duty in the impending trial.

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## **CHAPTER VII.**

### **DUNWOODIE'S TRAP AND THE RECAPTURE OF CAPTAIN WHARTON.**

During this conversation, which was held at a small distance in advance of the British column, and in full view of the Americans, Dunwoodie had been collecting his scattered troops, securing his few prisoners, and retiring to the ground where he had been posted at the first appearance of his enemy.

Captain Lawton suddenly exclaimed: "How's this! a blue coat among those scarlet gentry? As I hope to live to see old Virginia, it is my masquerading friend of the 60th, the handsome Captain Wharton, escaping from two of my best men!"

He had not done speaking when the survivor of these heroes joined his troop, bringing with him his own horse and those of the Cow-Boys; he reported the death of his comrade, and the escape of his prisoner.

This intelligence made an entire change in the views of Major Dunwoodie. He saw at once that his own reputation was involved in the escape of the prisoner, and he now joined with Lawton, watching for an opening to assail his foe to advantage.

"There," cried the delighted captain, as he pointed out the movement of Wellmere crossing the brook into the open plain; "there comes John Bull into the mousetrap, and with his eyes wide open."

"Surely," said Dunwoodie, eagerly, "he will not display his column on that flat. Wharton must tell him of the ambush. But if he does——"

"We will not leave him a dozen sound skins in his battalion," interrupted the other, springing into his saddle.

The truth was soon apparent; for the English column, after advancing for a short distance on the level land, displayed with an accuracy that would have done them honor on a field-day in their own Hyde Park.<sup>[56]</sup>

“Prepare to mount—mount!” cried Dunwoodie.

As the British line advanced slowly and in exact order, the guides opened a galling fire. It began to annoy that part of the royal troops which was nearest to them. Wellmere listened to the advice of the veteran who was next to him in rank, and ordered two companies to dislodge the American foot from their hiding-place. The movement created a slight confusion, and Dunwoodie seized the opportunity to charge. No ground could be more favorable for the manœuvres<sup>[57]</sup> of horse, and the attack of the Virginian was irresistible. It was aimed chiefly at the bank opposite the wood, in order to clear the Americans from the fire of their friends who were concealed; and it was completely successful. Wellmere, who was on the left of the line, was overthrown by the impetuous<sup>[58]</sup> fury of his assailants. Dunwoodie was in time to save him from the impending blow of one of his men, and raised him from the ground, had him placed on a horse, and delivered to the custody of his orderly.

The left of the British line was outflanked by the Americans, who doubled in their rear, and thus made the rout in that quarter total. Henry Wharton, who had volunteered to assist in dispersing the guides, was struck on his bridle-arm by a ball, which compelled him to change hands. His charger became ungovernable, and his rider, being unable with his wounded arm to manage the impatient animal, Henry Wharton found himself, in less than a minute, unwillingly riding by the side of Captain Lawton. The dragoon comprehended at a glance the ludicrous situation of his new comrade, but he had only time to cry aloud before they plunged into the English line:

“The horse knows the righteous cause better than his rider. Captain Wharton, you are welcome to the ranks of freedom.”

No time was lost, however, by Lawton, after the charge was completed, in securing his prisoner again; and perceiving him to be hurt, he directed him to be conveyed to the rear.

Captain Lawton called to a youth, who commanded the other troop, and proposed charging the unbroken line of the British. The proposition was as promptly accepted as it had been made, and the troops were arrayed for the purpose. The eagerness of their leader prevented the preparations necessary to insure success, and the horse, receiving a destructive fire as they advanced, were thrown into additional confusion. Both Lawton and his more juvenile comrade fell at this discharge. Fortunately for the credit of the Virginians, Major Dunwoodie reëntered the field at this critical instant. The eye of the youthful warrior flashed fire. At his feet lay Captain Singleton and Captain Lawton. Riding between his squadron and the enemy, in a voice that reached the hearts of his dragoons, he recalled them to their duty. His presence and words acted like magic. The line was formed promptly and with exactitude; the charge sounded; and, led on by their commander, the Virginians swept across the plain with an impetuosity that nothing could withstand, and the field was instantly cleared of the enemy; those who were not destroyed sought a shelter in the woods. Dunwoodie slowly withdrew from the fire of the English, who were covered by the trees, and commenced the painful duty of collecting the dead and wounded.

The guides took charge of Wharton, and, with a heavy heart, the young man retraced his steps to his father's cottage.

The English had lost in the several charges about one-third of their foot, but the remainder were rallied in the wood; and Dunwoodie, perceiving them to be too strongly posted to assail, had left a strong party with Captain Lawton, with orders to watch their motions, and to seize every opportunity to harass them before they reëmbarked.

Intelligence had reached the major of another party being out by way of the Hudson, and his duty required that he should hold himself in readiness to defeat the intentions of these also. Captain Lawton received his orders with strong injunctions to make no assault on the foe, unless a favorable chance should offer.

The injury received by this officer was in the head, being stunned by a glancing bullet; and parting with a laughing declaration from the major, that

if he again forgot himself, they should all think him more materially hurt, each took his own course.

It became incumbent on Dunwoodie to arrange the disposal of his prisoners. Sitgreaves he determined to leave in the cottage of Mr. Wharton, in attendance on Captain Singleton. Henry came to him with a request that Colonel Wellmere might also be left behind, under his parole. To this the major cheerfully assented.

Captain Wharton voluntarily gave a pledge to his keepers not to attempt to escape, and then proceeded to execute those duties, on behalf of his father, which were thought necessary in a host.

His duty to the wounded performed, Dunwoodie proceeded to the field where his troops had halted. The remnant of the English were already seen, over the tops of the trees, marching along the heights towards their boats, in compact order and with great watchfulness.

The party under Lawton had watched the retiring foe to his boats with the most unremitting vigilance, without finding any fit opening for a charge. The dragoons lingered on the shore till the last moment, and then they reluctantly commenced their own retreat back to the main body of the corps, which had retired to a small hamlet a short distance above the Locusts, where several roads intersected each other. This was a favorite halting place of the horse, and frequently held by light parties of the American army, during their excursions below.

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## CHAPTER VIII.

### THE PURSUIT.—BIRCH'S ESCAPE.

The gathering mists of the evening had begun to darken the valley, as the detachment of Lawton made its reappearance at its southern extremity. The march of the troops was slow and their line extended, for the benefit of ease. In the front rode the captain, side by side with his senior subaltern,<sup>[59]</sup> apparently engaged in close conference, while the rear was brought up by a young cornet, humming an air, and thinking of the sweets of a straw bed after the fatigues of a hard day's duty.

“Well, Tom, a slanderous propensity<sup>[60]</sup> is incurable—but,” stretching his body forward in the direction he was gazing, as if to aid him in distinguishing objects through the darkness, “what animal is moving through the field on our right?”

“’Tis a man,” said Mason, looking intently at the suspicious object.

“By his hump ’tis a dromedary!” added the captain, eyeing it keenly. Wheeling his horse suddenly from the highway, he exclaimed, “Harvey Birch!—take him, dead or alive!”

A dozen of the men, with the lieutenant at their head, followed the impetuous Lawton, and their speed threatened the pursued with a sudden termination of the race.

Birch prudently kept his position on the rock, where he had been seen by the passing glance of Henry Wharton, until evening had begun to shroud the surrounding objects in darkness. It was with difficulty that he had curbed his impatience until the obscurity of night should render his moving free from danger. He had not, however, completed a fourth of his way to his own residence, when his quick ear distinguished the tread of the approaching horse. Trusting to the increasing darkness, he determined to

persevere. By crouching, and moving quickly along the surface of the ground, he hoped to escape unseen. Captain Lawton was too much engrossed in conversation to suffer his eyes to indulge in their usual wandering; and the peddler, perceiving by the voices that the enemy he most feared had passed, yielded to his impatience, and stood erect, in order to make greater progress. The moment his body rose above the shadow of the ground it was seen, and the chase commenced. For a single instant Birch was helpless, his blood curdling in his veins at the imminence<sup>[61]</sup> of the danger, and his legs refusing their natural and necessary office. But it was only for a minute; casting his pack where he stood, and instinctively tightening the belt he wore, the peddler betook himself to flight. He knew that by bringing himself in line with his pursuers and the wood, his form would be lost to sight. This he soon effected, and he was straining every nerve to gain the wood itself, when several horsemen rode by him but a short distance on his left, and cut him off from this place of refuge. The peddler threw himself on the ground as they came near him, and was passed unseen. But delay now became too dangerous for him to remain in that position. He accordingly rose, and still keeping in the shadow of the wood, along the skirts of which he heard voices crying to each other to be watchful, he ran with incredible speed in a parallel line, but in an opposite direction, to the march of the dragoons.

At this instant the voice of Lawton rang through the valley, shouting:

“Harvey Birch!—take him, dead or alive!”

Fifty pistols lighted the scene, and the bullets whistled in every direction around the head of the devoted peddler.

A feeling of despair seized his heart, and in the bitterness of that moment he exclaimed:

“Hunted like a beast of the forest!”

These considerations, with the approaching footsteps of his pursuers, roused him to new exertions. A fragment of wall, that had withstood the ravages made by the war in the adjoining fences of wood, fortunately crossed his path. He hardly had time to throw his exhausted limbs over this barrier

before twenty of his enemies reached its opposite side. Their horses refused to take the leap in the dark, and amid the confusion Birch was enabled to gain a sight of the base of the hill, on whose summit was a place of perfect safety. The heart of the peddler now beat high with hope, when the voice of Captain Lawton again rang in his ears, shouting to his men to make room. The order was obeyed, and the fearless trooper rode at the wall at the top of his horse's speed, plunged the rowels in his charger, and flew over the obstacle in safety.

The triumphant hurrah of the men, and the thundering tread of the horse, too plainly assured the peddler of the emergency<sup>[62]</sup> of his danger. He was nearly exhausted, and his fate no longer seemed doubtful.

"Stop, or die!" was uttered above his head, and in fearful proximity to his ears.

Harvey stole a glance over his shoulder, and saw, within a bound of him, the man he most dreaded. By the light of the stars he beheld the uplifted arm and the threatening sabre. Fear, exhaustion, and despair seized his heart, and the intended victim fell at the feet of the dragoon. The horse of Lawton struck the prostrate peddler, and both steed and rider came violently to the earth.

As quick as thought Birch was on his feet again, with the sword of the discomfited dragoon in his hand. All the wrongs of the peddler shone on his brain with a dazzling brightness. For a moment the demon within him prevailed, and Birch brandished the powerful weapon in the air; in the next it fell harmless on the reviving but helpless trooper. The peddler vanished up the side of the friendly rock.

"Help Captain Lawton, there!" cried Mason, as he rode up, followed by a dozen of his men; "and some of you dismount with me and search these rocks; the villain lies here concealed."

"Hold!" roared the discomfited captain, raising himself with difficulty on his feet; "if one of you dismount, he dies. Tom, my good fellow, you will help me to straddle Roanoke again."

The astonished subaltern complied in silence, while the wondering dragoons remained as fixed in their saddles as if they composed a part of the animals they rode.

Lawton and Mason rode on in silence, the latter ruminating<sup>[63]</sup> on the wonderful change produced in his commander by his fall, when they arrived opposite to the gate before the residence of Mr. Wharton. The troop continued its march, but the captain and his lieutenant dismounted, and, followed by the servant of the former, they proceeded slowly to the door of the cottage.

A few words from Mason explained the nature and manner of his captain's hurts, and Miss Peyton cheerfully accorded the required accommodations. While the room intended for the trooper was getting ready, and the doctor was giving certain portentous<sup>[64]</sup> orders, the captain was invited to rest himself in the parlor.

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## CHAPTER IX.

### THE UNWELCOME VISITORS.

The house of Birch had been watched at different times by the Americans with a view to his arrest, but never with success, the reputed spy possessing a secret means of intelligence that invariably defeated their schemes. Once, when a strong body of the Continental army held the Four Corners for a whole summer, orders had been received from Washington himself never to leave the door of Harvey Birch unwatched. The command was rigidly obeyed, and during this long period the peddler was unseen; the detachment was withdrawn, and the following night Birch reëntered his dwelling.

The father of Harvey had kept his dying situation a secret from the neighborhood, in the hope that he might still have the company of his child in his last moments. The confusion of the day, and his increasing dread that Harvey might be too late, helped to hasten the event he would fain arrest for a little while. As night set in his illness increased to such a degree that the dismayed housekeeper sent a truant boy, who had shut up himself with them during the combat, to the Locusts in quest<sup>[65]</sup> of a companion to cheer her solitude. Cæsar alone could be spared, and, loaded with eatables and cordials by the kind-hearted Miss Peyton, the black had been despatched on his duty. The dying man was past the use of medicines, and his chief anxiety seemed to centre in a meeting with his child.

The old man had closed his eyes, and his attendants believed him to be asleep. The house contained two large rooms and many small ones. One of the former served as kitchen and sitting-room; in the other lay the father of Birch; of the latter one was the sanctuary of the vestal, and the other contained the stock of provisions. A huge chimney of stone rose in the centre, serving of itself for a partition between the large rooms; and fireplaces of corresponding dimensions were in each apartment. A bright flame was burning in that of the common room, and within the very jambs

of its monstrous jaws sat Cæsar and Katy. The African was impressing his caution on the housekeeper, and commenting on the general danger of indulging an idle curiosity, when his roving eyes suddenly became fixed, and his teeth chattered with affright. Katy, turning her face, saw the peddler himself standing within the door of the room.

“Is he alive?” asked Birch, tremulously, and seemingly afraid to receive the answer.

“Surely,” said Katy, rising hastily, and officiously offering her chair; “he must live till day, or till the tide is down.”

Disregarding all but the fact that his father still lived, the peddler stole gently into the room of his dying parent. The tie which bound father and son was of no ordinary kind. In the wide world they were all to each other. Approaching the bedside, Harvey leaned his body forward, and, in a voice nearly choked by his feelings, he whispered near the ear of the sick:

“Father, do you know me?” A noise in the adjoining room interrupted the dying man, and the impatient peddler hastened to learn the cause. The first glance of his eye on the figure in the doorway told the trader but too well his errand, and the fate that probably awaited himself. The intruder was a man still young in years, but his lineaments<sup>[66]</sup> bespoke a mind long agitated by evil passions. His dress was of the meanest materials, and so ragged and unseemly as to give him the air of studied poverty. His hair was prematurely whitened, and his sunken, lowering eye avoided the bold, forward look of innocence. There was a restlessness in his movements and an agitation in his manner that proceeded from the workings of the foul spirit within him. This man was a well-known leader of one of those gangs of marauders<sup>[67]</sup> who infested the country with a semblance of patriotism, and who were guilty of every grade of offence, from simple theft up to murder. Behind him stood several other figures, clad in a similar manner, but whose countenances expressed nothing more than the indifference of brutal insensibility. They were well armed with muskets and bayonets, and provided with the usual implements of foot-soldiers. Harvey knew resistance was in vain, and quietly submitted to their directions. In the twinkling of an eye both he and Cæsar were stripped of their decent

garments, and made to exchange clothes with two of the filthiest of the band. They were then placed in separate corners of the room, and, under the muzzles of the muskets, required faithfully to answer such interrogatories<sup>[68]</sup> as were put to them.

“Where is your pack?” was the first question to the peddler.

“Hear me,” said Birch, trembling with agitation; “in the next room is my father, now in the agonies of death; let me go to him, receive his blessing, and close his eyes, and you shall have all—aye, all.”

“Answer me as I put the questions, or this musket shall send you to keep the old driveller<sup>[69]</sup> company; where is your pack?”

“I will tell you nothing, unless you let me go to my father,” said the peddler resolutely.

His persecutor raised his arm with a malicious sneer and was about to execute his threat when one of his companions checked him.

“What would you do?” he said; “you surely forget the reward. Tell us where are your goods, and you shall go to your father.”

Birch complied instantly, and a man was despatched in quest of the booty; he soon returned, throwing the bundle on the floor, swearing it was as light as a feather.

“Aye,” cried the leader, “there must be gold somewhere for what it did contain. Give us your gold, Mr. Birch; we know you have it; you will not take continental,<sup>[70]</sup> not you.”

“You break your faith,” said Harvey.

“Give us your gold,” exclaimed the leader furiously, pricking the peddler with his bayonet until the blood followed his pushes in streams. At this instant a slight movement was heard in the adjoining room, and Harvey cried, imploringly:

“Let me—let me go to my father, and you shall have all of it.”

“I swear you shall go then,” said the Skinner.

“Here, take the trash,” cried Birch, as he threw aside the purse, which he had contrived to conceal, notwithstanding the change in his garments.

The robber raised it from the floor with a fiendish laugh.

“Aye, but it shall be to your father in heaven.”

“Monster! have you no feeling, no faith, no honesty?”

“To hear him, one would think there was not a rope around his neck already,” said the other laughing. “There is no necessity for your being uneasy, Mr. Birch; if the old man gets a few hours the start of you in the journey, you will be sure to follow him before noon to-morrow.”

This unfeeling communication had no effect on the peddler, who listened with gasping breath to every sound from the room of his parent, until he heard his own name spoken in the hollow, sepulchral tones of death. Birch could endure no more, but shrieking out:

“Father! hush—father! I come—I come!” he darted by his keeper, and was the next moment pinned to the wall by the bayonet of another of the band. Fortunately, his quick motion had caused him to escape a thrust aimed at his life, and it was by his clothes only that he was confined.

“No, Mr. Birch,” said the Skinner, “we know you too well for a slippery rascal, to trust you out of sight—your gold, your gold!”

“You have it,” said the peddler, writhing in agony.

“Aye, we have the purse, but you have more purses. King George<sup>[71]</sup> is a prompt paymaster, and you have done him many a piece of good service. Where is your hoard? Without it you will never see your father.”

“Remove the stone underneath the woman,” cried the peddler, eagerly; “remove the stone.”

“He raves! He raves!” said Katy, instinctively moving her position to a different stone from the one on which she had been standing. In a moment it

was torn from its bed, and nothing but earth was seen underneath.

“He raves! you have driven him from his right mind,” continued the trembling spinster; “would any man in his senses keep gold under a hearth?”

“Peace, babbling fool!” cried Harvey. “Lift the corner stone, and you will find that which will make you rich, and me a beggar.”

“And then you will be despicable,” said the housekeeper bitterly. “A peddler without goods and without money is sure to be despicable.”

“There will be enough left to pay for his halter,” cried the Skinner, who was not slow to follow the instructions of Harvey, soon lighting upon a store of English guineas. The money was quickly transferred to a bag, notwithstanding the declarations of the spinster that her dues were unsatisfied, and that, of right, ten of the guineas were her property.

Delighted with a prize that greatly exceeded their expectations, the band prepared to depart, intending to take the peddler with them, in order to give him up to the American troops above, and to claim the reward offered for his apprehension. Everything was ready, and they were about to lift Birch in their arms—for he resolutely refused to move an inch—when a form appeared in their midst, which appalled the stoutest heart among them. The father had risen from his bed, and he tottered forth at the cries of his son. Around his body was thrown the sheet of the bed, and his fixed eye and haggard face gave him the appearance of a being from another world. Even Katy and Cæsar thought it was the spirit of the elder Birch, and they fled the house, followed by the alarmed Skinners in a body.

The excitement, which had given the sick man strength, soon vanished; and the peddler, lifting him in his arms, reconveyed him to his bed. The reaction of the system hastened to close the scene. The glazed eye of the father was fixed upon the son; his lips moved, but his voice was unheard. Harvey bent down, and, with the parting breath of his parent, received the parting benediction.

The Skinners had fled precipitately to the wood, which was near the house of Birch, and once safely sheltered within its shades, they halted, and mustered their panic-stricken forces.

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# CHAPTER X.

## A COLONIAL REPAST.

The family at the Locusts had slept, or watched, through all the disturbances at the cottage of Birch, in perfect ignorance of their occurrence. Additional duties had drawn the ladies from their pillows at an hour somewhat earlier than usual.

Henry Wharton awoke from a sleep in which he had dreamt of suffering amputation; and Dr. Sitgreaves pronounced that he would be a well man within a fortnight. Colonel Wellmere did not make his appearance; he breakfasted in his own room, and the surgeon was free to go to the bedside of Captain Singleton, where he had watched during the night without once closing his eyes. Captain Lawton had been received with many courteous inquiries after the state of his health.

A single horse chaise was seen approaching the gate. Miss Peyton advanced to receive their guest. She was young, and of a light and graceful form, but of exquisite proportions. As Dr. Sitgreaves supported her from the chaise, she turned an expressive look at the face of the practitioner.

“Your brother is out of danger, and wishes to see you, Miss Singleton,” said the surgeon.

By the time the afternoon sun had travelled a two hours’ journey from the meridian, the formal procession from the kitchen to the parlor commenced, under the auspices of Cæsar, who led the van, supporting a turkey on the palms of his withered hands with the dexterity of a balance-master.

Next followed the servant of Captain Lawton, bearing, as he marched stiffly, a ham of true Virginian flavor, a present from the spinster’s brother in Accomac. The supporter of this savory dish kept his eye on his trust with

military precision; and it might be difficult to say which contained the most juice, his own mouth or the bacon.

Third in the line was to be seen the valet of Colonel Wellmere, who carried in either hand chickens fricasseed, and oyster patties.

After him marched the attendant of Dr. Sitgreaves, who instinctively seized an enormous tureen and followed on in place, until the steams of the soup so completely bedimmed his glasses that he was compelled to deposit his freight on the floor, until, by removing them, he could see his way through the piles of reserved china and plate-warmers.

Next followed another trooper, conveying a pair of roast ducks. The white boy who belonged to the house brought up the rear, groaning under a load of sundry dishes of vegetables that the cook, by the way of climax, had unwittingly heaped on him.

Cæsar had no sooner deposited his bird than he turned mechanically on his heel, and took up his line of march again for the kitchen. In this evolution the black was imitated by his companions in succession, and another procession to the parlor followed in the same order. By this admirable arrangement, whole flocks of pigeons, certain bevvies of quails, shoals of flat-fish, bass, and sundry woodcock, found their way into the presence of the company.

A third attack brought suitable quantities of potatoes, onions, beets, cold-slaw, rice, and all the other minutia<sup>[72]</sup> of a goodly dinner.

The board now fairly groaned with American profusion, and Cæsar, glancing his eye over the show with a most approving conscience after readjusting every dish that had not been placed on the table by his own hands, proceeded to acquaint the mistress of the revels that his task was happily accomplished.

Much time and some trouble were expended before the whole party were, to the joy of Cæsar, comfortably seated around the table.

Though the meat and vegetables had made their entrance with perfect order and propriety, their exeunt<sup>[73]</sup> was effected much in the manner of a retreat of militia. The point was to clear the board something after the fabled practice of the harpies; and by dint of scrambling, tossing, breaking, and spilling, the remnants of the overflowing repast disappeared. And now another series of processions commenced, by virtue of which a goodly display of pastry, with its usual accompaniments, garnished the table.

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# CHAPTER XI.

## THE PEDDLER'S CAPTURE.

In the confusion and agitation produced by the events we have recorded, the death of the elder Birch had occurred unnoticed; but a sufficient number of the immediate neighbors were hastily collected, and the ordinary rites of sepulture<sup>[74]</sup> were paid to the deceased. Birch supported the grave and collected manner that was thought becoming in a male mourner.

The muscles of the peddler's face were seen to move, and as the first clod of earth fell on the tenement of his father, sending up that dull, hollow sound that speaks so eloquently the mortality of man, his whole frame was for an instant convulsed. He bent his body down, as if in pain, his fingers worked, while the hands hung lifeless by his side, and there was an expression in his countenance that seemed to announce a writhing of the soul; but it was not unresisted, and it was transient. He stood erect, drew a long breath, and looked around him with an elevated face, that seemed to smile with a consciousness of having obtained the mastery. The grave was soon filled; a rough stone, placed at either extremity, marked its position, and the turf, whose faded vegetation was adapted to the fortunes of the deceased, covered the little hillock with the last office of seemliness. Uncovering his head, the peddler hesitated a moment to gather energy, and spoke.

"My friends and neighbors," he said, "I thank you for assisting me to bury my dead out of my sight."

A solemn pause succeeded the customary address, and the group dispersed in silence. The peddler and Katy were followed into the building by one man, however, who was well known to the surrounding country by the significant term of "a speculator." Katy saw him enter, with a heart that

palpitated with dreadful forebodings; but Harvey civilly handed him a chair, and evidently was prepared for the visit.

The peddler went to the door, and, taking a cautious glance about the valley, quickly returned and commenced the following dialogue:

“The sun has just left the top of the eastern hill; my time presses me; here is the deed for the house and lot; everything is done according to law.”

The other took the paper, and conned its contents with a deliberation that proceeded partly from caution, and partly from the unlucky circumstances of his education having been much neglected when a youth. The time thus occupied in this tedious examination was employed by Harvey in gathering together certain articles which he intended to include in the stores that were to leave the habitation with himself.

“I’m rather timersome about this conveyance,” said the purchaser, having at length waded though the covenants<sup>[75]</sup> of the deed.

“Why so?”

“I’m afraid it won’t stand good in law. I know that two of the neighbors leave home to-morrow morning, to have the place entered for confiscation; <sup>[76]</sup> and if I should give forty pounds and lose it all, ’twould be a dead pull back to me.”

“They can only take my right,” said the peddler; “pay me two hundred dollars, and the house is yours; you are a well-known Whig, <sup>[77]</sup> and you at least they won’t trouble.” As Harvey spoke, there was a strange bitterness of manner, mingled with the shrewd care expressed concerning the sale of his property.

“Say one hundred and it is a bargain,” returned the man with a grin that he meant for a good-natured smile.

“A bargain!” echoed the peddler, in surprise; “I thought the bargain was already made.”

“Nothing is a bargain,” said the purchaser, with a chuckle, “until papers are delivered, and the money paid in hand.”

“You have the paper.”

“Aye, and will keep it, if you will excuse the money; come, say one hundred and fifty, and I won’t be hard; here—here is just the money.”

The peddler looked from the window, and saw with dismay that the evening was fast advancing, and knew well that he endangered his life by remaining in the dwelling after dark; yet he could not tolerate the idea of being defrauded in this manner, in a bargain that had already been fairly made; he hesitated.

“Well,” said the purchaser, rising, “mayhap you will find another man to trade with between this and morning; but, if you don’t, your title won’t be worth much afterwards.”

“I agree to the price,” he said; and, turning to the spinster, he placed a part of the money in her hand, as he continued, “had I other means to pay you, I would have lost all, rather than suffer myself to be defrauded of part.”

“You may lose all yet,” muttered the stranger, with a sneer, as he rose and left the building.

“Have you another house to go to?” inquired Katy.

“Providence will provide me with a home.”

“Yes,” said the housekeeper; “but maybe ’twill not be to your liking.”

“The poor must not be difficult.”<sup>[78]</sup> As the peddler spoke he dropped the article he was packing from his hand, and seated himself on a chest, with a look of vacant misery.

“It is painful to part with even you, good woman,” he continued; “but the hour has come, and I must go. What is left in the house is yours; to me it could be of no use, and it may serve to make you comfortable. Farewell—we may meet hereafter.”

“In the regions of darkness!” cried a voice that caused the peddler to sink on the chest from which he had risen, in despair.

“What! another pack, Mr. Birch, and so well stuffed so soon!”

“Have you not done evil enough?” cried the peddler, regaining his firmness, and springing on his feet with energy; “is it not enough to harass the last moments of a dying man—to impoverish me; what more would you have?”

“Your blood!” said the Skinner, with cool malignity.

“And for money,” cried Harvey, bitterly; “like the ancient Judas, you would grow rich with the price of blood!”

“Aye, and a fair price it is, my gentleman; fifty guineas; nearly the weight of that scarecrow carcass of yours in gold.”

A figure stood in the shadow of the door, as if afraid to be seen in the group of Skinners; but a blaze of light, aided by some articles thrown in the fire by his persecutors, showed the peddler the face of the purchaser of his little domain. Occasionally there was some whispering between this man and the Skinner nearest to him, that induced Harvey to suspect he had been the dupe of a contrivance in which that wretch had participated. It was, however, too late to repine; and he followed the party from the house with a firm and collected tread, as if marching to a triumph, and not to a gallows. In passing through the yard, the leader of the band fell over a billet of wood, and received a momentary hurt from the fall. Exasperated at the incident, the fellow sprang to his feet, filling the air with execrations.

“The curse of heaven light on the log!” he exclaimed; “the night is too dark for us to move in. Throw that brand of fire in yon pile of tow, to light up the scene.”

“Hold!” cried the speculator; “you’ll fire the house.”

“And see the farther,” said the other, hurling the brand in the midst of the combustibles. In an instant the building was in flames. “Come on; let us move towards the heights while we have light to pick our road.”

“Villain!” cried the exasperated purchaser, “is this your friendship—this my reward for kidnapping the peddler?”

“’Twould be wise to move more from the light, if you mean to entertain us with abuse, or we may see too well to miss our mark,” cried the leader of the gang. The next instant he was as good as his threat, but happily missed the terrified speculator and equally appalled spinster, who saw herself reduced from comparative wealth to poverty, by the blow.

Prudence dictated to the pair a speedy retreat; and the next morning the only remains of the dwelling of the peddler was the huge chimney.

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## CHAPTER XII.

### HOTEL FLANAGAN AND ITS INTRUDERS.

The position held by the corps of dragoons, we have already said, was a favorite place of halting with their commander.

A cluster of some half-dozen small and dilapidated<sup>[79]</sup> buildings formed what, from the circumstances of two roads intersecting each other at right angles, was called the Four Corners. As usual, one of the most imposing of these edifices had been termed, in the language of the day, “a house of entertainment for man and beast.” On a rough board, suspended from the gallows-looking post that had supported the ancient sign, was written in red chalk, “Elizabeth Flanagan, her hotel,” an ebullition<sup>[80]</sup> of the wit of some of the idle wags of the corps. The matron was the widow of a soldier who had been killed in the service, and who, like herself, was a native of a distant island, and had early tried his fortune in the colonies of North America. She constantly migrated with the troops, and it was seldom that they became stationary for two days at a time but the little cart of the bustling woman was seen driving into the encampment, loaded with some articles she conceived would make her presence welcome. With a celerity<sup>[81]</sup> that seemed almost supernatural, Betty took up her ground and commenced her occupation. Sometimes the cart itself was her shop; at others the soldiers made her a rude shelter of such materials as offered. But on the present occasion she seized on a vacant building and formed what she herself pronounced to be “most illigant lodgings.” The men were quartered in the adjacent barns, and the officers collected in the “Hotel Flanagan,” as they facetiously<sup>[82]</sup> called headquarters. Betty was well known to every trooper in the corps, could call each by his Christian or nickname, as best suited her fancy; and although absolutely intolerable to all whom habit had not made familiar with her virtues, was a general favorite with these partisan warriors. Her faults were, a trifling love of

liquor, excessive filthiness, a total disregard of all the decencies of language; her virtues, an unbounded love for her adopted country, perfect honesty when dealing on certain known principles with the soldiery, and a great good-nature. Added to these, Betty had the merit of being the inventor of that beverage which is so well known, at the present hour, to all the patriots who make a winter's march between the commercial and the political capitals of this great State, and which is distinguished by the name of "cock-tail." Such then was the mistress of the mansion, who, reckless of the cold northern blasts, showed her blooming face from the door of the building to welcome the arrival of her favorite, Captain Lawton, and his companion, her master in surgery.

Lawton and his companion now entered the building. A long table, made from boards torn from the side of an out-building, was stretched through the middle of the largest apartment, or the bar-room, and on it was a very scanty display of crockery ware. The steams of cookery arose from an adjoining kitchen, but the principal attraction was a demijohn of fair proportions, which had been ostentatiously placed on high by Betty as the object most worthy of notice.

Lawton soon learned that it was teeming with the real amber-colored juice of the grape, and had been sent from the Locusts, as an offering to Major Dunwoodie, from his friend Captain Wharton, of the royal army.

The group within were all young men and tried soldiers; in number they were about a dozen, and their manners and their conversation were a strange mixture of the bluntness of the partisan with the manners of gentlemen. Some were endeavoring to sleep on the benches which lined the walls, some were walking the apartments, and others were seated in earnest discussion on subjects connected with the business of their lives. All this time Dunwoodie sat by himself, gazing at the fire, and lost in reflections which none of his officers presumed to disturb.

A loud summons at the door of the building, and the dragoons instinctively caught up their arms to be prepared for the worst.

The door was opened and the Skinners entered, dragging the peddler, bending beneath the load of his pack.

“Which is Captain Lawton?” said the leader of the gang, gazing around him in some little astonishment.

“He waits your pleasure,” said the trooper, dryly.

“Then here I deliver to your hands a condemned traitor; this is Harvey Birch, the peddler spy.”

Lawton started as he looked his old acquaintance in the face, and turning to the Skinner with a lowering look, he asked:

“And who are you, sir, that speak so freely of your neighbors? But,” bowing to Dunwoodie, “your pardon, sir; here is the commanding officer; to him you will please address yourself.”

“No,” said the man, sullenly, “it is to you I deliver the peddler, and from you I claim my reward.”

“Are you Harvey Birch?” said Dunwoodie, advancing with an air of authority that instantly drove the Skinner to a corner of the room.

“I am,” said Birch, proudly.

“And a traitor to your country,” continued the major, with sternness; “do you not know that I should be justified in ordering your execution this night?”

“’Tis not the will of God to call a soul so hastily to his presence,” said the peddler, with solemnity.

“You speak truth,” said Dunwoodie; “but as your offence is most odious to a soldier, so it will be sure to meet with the soldier’s vengeance; you die to-morrow.”

“’Tis as God wills.”

“I have spent many a good hour to entrap the villain,” said the Skinner, advancing from his little corner; “and I hope you will give me a certificate that will entitle us to the reward; ’twas promised to be paid in gold.”

“Major Dunwoodie,” said the officer of the day, entering the room, “the patrols report a house to be burnt near yesterday’s battle-ground.”

“’Twas the hut of the peddler,” muttered the leader of the gang; “we have not left him a shingle for shelter; I should have burned it months ago, but I wanted his shed for a trap to catch the sly fox in.”

“You seem a most ingenious patriot,” said Lawton. “Major Dunwoodie, I second the request of this worthy gentleman, and crave the office of bestowing the reward on him and his fellows.”

“Take it;—and you, miserable man, prepare for the fate which will surely befall you before the setting of to-morrow’s sun.”

“Life offers but little to tempt me with,” said Harvey, slowly raising his eyes and gazing wildly at the strange faces in the apartment.

“Come, worthy children of America!” said Lawton, “follow and receive your reward.”

The gang eagerly accepted the invitation, and followed the captain towards the quarters assigned to his troop.

The officer to whose keeping Dunwoodie had committed the peddler, transferred his charge to the custody of the regular sergeant of the guard. After admonishing the non-commissioned guardian of Harvey to omit no watchfulness in securing the prisoner, the youth wrapped himself in his cloak, and, stretched on a bench before a fire, soon found the repose he needed. A rude shed extended the whole length of the rear of the building, and from off one end had been partitioned a small apartment that was intended as a repository for many of the lesser implements of husbandry. The considerate sergeant thought this the most befitting place in which to deposit his prisoner until the moment of execution.

Several inducements urged Sergeant Hollister to this determination, among which was the absence of the washerwoman, who lay before the kitchen fire, dreaming that the corps was attacking a party of the enemy, and mistaking the noise that proceeded from her own nose for the bugles of the Virginians sounding the charge. Another was the peculiar opinions that the veteran entertained of life and death, and by which he was distinguished in the corps as a man of most exemplary piety and holiness of life. Captain Lawton had rewarded his fidelity by making him his orderly.

Followed by Birch, the sergeant proceeded in silence to the door of the intended prison, and, throwing it open with one hand, he held a lantern with the other to light the peddler to his prison.

Harvey thoroughly examined the place in which he was to pass the night, and saw no means of escape. He buried his face in both hands, and his whole frame shook; the sergeant regarded him closely, took up the lantern, and, with some indignation in his manner, left him to sorrowful meditations on his approaching fate. Birch sank, in momentary despair, on the pallet of Betty, while his guardian proceeded to give the necessary instructions to the sentinels for his safe-keeping.

Hollister concluded his injunctions to the man in the shed by saying, "Your life will depend on his not escaping. Let none enter or quit the room till morning."

"But," said the trooper, "my orders are to let the washerwoman pass in and out as she pleases."

"Well, let her then; but be careful that this wily peddler does not get out in the folds of her petticoats." He then continued his walk, giving similar orders to each of the sentinels near the spot.

For some time after the departure of the sergeant, silence prevailed within the solitary prison of the peddler, until the dragoon at his door heard his loud breathings, which soon rose into the regular cadence of one in deep sleep. The man continued walking his post, musing on an indifference to life which could allow nature its customary rest, even on the threshold of the grave.

His meditations were, however, soon interrupted by the approach of the washerwoman, who came staggering through the door that communicated with the kitchen, muttering execrations against the servants of the officers, who, by their waggery, had disturbed her slumbers before the fire. The sentinel understood enough of her curses to comprehend the case; but all his efforts to enter into conversation with the enraged woman were useless, and he suffered her to enter her room without explaining that it contained another inmate. The noise of her huge frame falling on the bed was succeeded by a silence that was soon interrupted by the renewed respiration of the peddler, and within a few minutes Harvey continued to breathe aloud, as if no interruption had occurred. The relief<sup>[83]</sup> arrived at this moment, and at the same time, the door of the prison was opened and Betty reappeared, staggering back again toward her former quarters.

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## CHAPTER XIII.

### THE SKINNERS' REWARD.

The Skinners followed Captain Lawton with alacrity towards the quarters occupied by the troop of that gentleman. They soon arrived at a better sort of farm-house, the very extensive out-buildings of which were in tolerable repair, for the times. Lawton excused himself for a moment, and entered his quarters. He soon returned, holding in his hand one of the common stable-lanterns, and led the way towards a large orchard that surrounded the buildings on three sides. The gang followed the trooper in silence. Approaching the captain, the Skinner said, "Do you think the colonies will finally get the better of the king?"

"Get the better!" echoed the captain, with impetuosity; then checking himself, he continued, "no doubt they will. If the French<sup>[84]</sup> will give us arms and money, we can drive out the royal troops in six months."

"Well, so I hope we shall soon; and then we shall have a free government, and we, who fight for it, will get our reward."

"Oh!" cried Lawton, "your claims are indisputable; while all these vile Tories<sup>[85]</sup> who live at home peaceably, to take care of their farms, will be held in the contempt they merit. You have no farm, I suppose?"

"Not yet; but it will go hard if I do not find one before the peace is made."

"Right; study your own interests, and you study the interests of your country; press the point of your own services and rail at the Tories, and I'll bet my spurs against a rusty nail that you get to be a county clerk at least. Men who have nothing, act as if the wealth of the Indies depended on their fidelity; all are not villains like yourself, or we should have been slaves to England years ago."

“How!” shouted the Skinner, starting back, and dropping his musket to the level of the other’s breast; “am I betrayed, and are you my enemy?”

“Miscreant!” shouted Lawton, his sabre ringing in its steel scabbard as he struck the musket of the fellow from his hands; “offer but again to point your gun at me, and I’ll cleave you to the middle.”

“And you will not pay us, then, Captain Lawton?” said the Skinner, trembling in every joint, for just then he saw a party of mounted dragoons silently encircling his whole party.

“Oh! pay you—yes, you shall have the full measure of your reward. There is the money that Colonel Singleton sent down for the captor of the spy,” throwing a bag of guineas with disdain at the other’s feet. “But ground your arms, you rascals, and see that the money is truly told.”<sup>[86]</sup>

The intimidated band did as they were ordered, and while they were eagerly employed in this pleasing avocation, a few of Lawton’s men privately knocked the flints out of their muskets.

“Well,” cried the impatient captain, “is it right—have you the promised reward?”

“There is just the money,” said the leader, “and we will now go to our homes, with your permission.”

“Hold! so much to redeem our promise—now for justice; we pay you for taking the spy, but we punish you for burning, robbing, and murdering. Seize them, my lads, and give each of them the law of Moses—forty save one.”

This command was given to no unwilling listeners, and in the twinkling of an eye the Skinners were stripped and fastened by the halters of the party to as many of the apple trees as were necessary to furnish one to each of the gang. Swords were quickly drawn, and fifty branches were cut from the trees like magic; from these were selected a few of the most supple of the twigs, and a willing dragoon was soon found to wield each of the weapons.

Captain Lawton gave the word, humanely cautioning his men not to exceed the discipline prescribed by the Mosaic law, and the uproar of Babel commenced in the orchard. The flagellation<sup>[87]</sup> was executed with great neatness and despatch, and it was distinguished by no irregularity, excepting that none of the disciplinarians began to count until he had tried his whip by a dozen or more blows, by the way, as they said themselves, of finding out the proper place to strike. As soon as this summary operation was satisfactorily completed, Lawton directed his men to leave the Skinners to replace their own clothes and to mount their horses, for they were a party who had been detached for the purpose of patrolling lower down in the county.

“You see, my friend,” said the captain to the leader of the Skinners, after he had prepared himself to depart, “I can cover you to some purpose when necessary. If we meet often, you will be covered with scars, which, if not honorable, will at least be merited.”

The fellow made no reply. He was busy with his musket, and hastening his comrades to march; when, everything being ready, they proceeded sullenly towards some rocks at no great distance, which were overhung by a deep wood. The moon was just rising, and a troop of dragoons could easily be distinguished where they had been left. Suddenly turning, the whole gang levelled their pieces and drew their triggers. The action was noticed, and the snapping of the locks was heard by the soldiers, who returned their futile attempt with a laugh of derision, the captain crying aloud:

“Ah! rascals, I knew you, and have taken away your flints.”

“You should have taken away that in my pouch, too,” shouted the leader, firing his gun in the next instant. The bullet grazed the ear of Lawton, who laughed as he shook his head, saying: “A miss is as good as a mile.” One of the dragoons had seen the preparations of the Skinner—who had been left alone by the rest of the gang as soon as they had made their abortive<sup>[88]</sup> attempt at revenge—and was in the act of plunging his spurs into his horse as the fellow fired. The distance to the rocks was but small, yet the speed of the horse compelled the leader to abandon both money and musket to effect his escape. The soldier returned with his prizes, and offered them to the

acceptance of his captain; but Lawton rejected them, telling the man to retain them himself until the rascal appeared in person to claim his property.

The patrol departed, and the captain slowly returned to his quarters with an intention of retiring to rest. A figure moving rapidly among the trees in the direction of the wood whither the Skinners had retired caught his eye, and, wheeling on his heel, the cautious partisan approached it, and, to his astonishment, saw the washerwoman at that hour of the night, and in such a place.

As the captain entered his quarters the sentinel at the door inquired if he had met Mrs. Flanagan, and added that she had passed there filling the air with threats against her tormentors at the “Hotel?” and inquiring for the captain in search of redress. Lawton heard the man in astonishment, appeared struck with a new idea—walked several yards towards the orchard, and returned again; for several minutes he paced rapidly to and fro before the door of the house, and hastily entering it, he threw himself on a bed in his clothes and was soon in a profound sleep.

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## CHAPTER XIV.

### THE DOUBLE WARNING.

While his comrades were sleeping in perfect forgetfulness of their hardships and dangers, the slumbers of Dunwoodie were broken and unquiet. After spending a night of restlessness he arose, unrefreshed, from the rude bed where he had thrown himself in his clothes, and without awaking any of the group around him he wandered into the open air in search of relief. In this disturbed state of mind the major wandered through the orchard, and was stopped in his walk by arriving at the base of those rocks which had protected the Skinners in their flight, before he was conscious whither his steps had carried him. He was about to turn and retrace his path to his quarters, when he was startled by a voice, bidding him—

“Stand or die!”

Dunwoodie turned in amazement, and beheld the figure of a man placed at a distance above him on a shelving rock with a musket levelled at himself. The light was not sufficiently powerful to reach the recesses of that gloomy spot, and a second look was necessary before he discovered, to his astonishment, that the peddler stood before him. Comprehending in an instant the danger of his situation, and disdaining to implore mercy or retreat, had the latter been possible, the youth cried firmly:

“If I am to be murdered, fire! I will never become your prisoner.”

“No, Major Dunwoodie,” said Birch, lowering his musket, “it is neither my intention to capture nor to slay.”

“What then would you have, mysterious being?” said Dunwoodie, hardly able to persuade himself that the form he saw was not a creature of the imagination.

“Your good opinion,” answered the peddler, with emotion; “I would wish all good men to judge me with lenity.<sup>[89]</sup> Major Dunwoodie, danger is near them you love most—danger within and without—double your watchfulness—strengthen your patrols—and be silent. With your opinion of me, should I tell you more, you would suspect an ambush. But remember and guard them you love best.”

The peddler discharged his musket in the air, and threw it at the feet of his astonished auditor. When surprise and the smoke allowed Dunwoodie to look again on the rock where he had stood, the spot was vacant.

The youth was aroused from the stupor which had been created by this strange scene, by the trampling of horses, and the sound of bugles. A patrol was drawn to the spot by the report of the musket, and the alarm had been given to the corps. Without entering into any explanation with his men, the major returned quickly to his quarters, followed by many of his officers, and preceded by Sergeant Hollister, went to the place which was supposed to contain the peddler.

“Well, sir,” said the major to the sentinel who guarded the door, “I trust you have your prisoner in safety.”

“He is yet asleep,” replied the man, “and he makes such a noise, I could hardly hear the bugles sound the alarm.”

“Open the door and bring him forth.”

The order was obeyed; but, to the utter amazement of the honest veteran who entered the prison, he found the room in no little disorder—the coat of the peddler where his body ought to have been, and part of the wardrobe of Betty scattered in disorder on the floor. The washerwoman herself occupied the pallet, in profound mental oblivion, clad as when last seen, excepting a little black bonnet, which she so constantly wore that it was commonly thought she made it perform the double duty of both day and night cap. The noise of their entrance, and the exclamations of the party, awoke the woman.

Dunwoodie turned to leave the apartment, and he saw Captain Lawton standing with folded arms, contemplating the scene with profound silence. Their eyes met, and they walked together for a few minutes in close conversation, when Dunwoodie returned and dismissed the guard to their place of rendezvous.<sup>[90]</sup>

Dr. Sitgreaves, who had been carousing at the “Hotel Flanagan,” suddenly declared his intention of visiting the Locusts, and inquiring into the state of the wounded. Lawton was ready for the excursion; and mounting, they were soon on the road, though the surgeon was obliged to submit to a few jokes from the washerwoman before he could get out of hearing.

“Listen!” said Lawton, stopping his horse. He had not done speaking, when a stone fell at his feet and rolled harmlessly across the path.

“A friendly shot, that,” cried the trooper; “neither the weapon, nor its force, implies much ill-will. Oh! here is the explanation along with the mystery.” So saying, he tore a piece of paper that had been ingeniously fastened to the small fragment of rock which had thus singularly fallen before him; and opening it, the captain read the following words, written in no very legible hand:

“A musket ball will go farther than a stone, and things more dangerous than yarbs for wounded men lie hid in the rocks of Winchester. The horse may be good, but can he mount a precipice?”

“Thou sayest the truth, strange man,” said Lawton, “courage and activity would avail but little against assassination<sup>[91]</sup> and these rugged passes.” Remounting his horse, he cried aloud, “Thanks, unknown friend; your caution will be remembered.”

A meagre hand was extended for an instant over a rock, in the air, and afterwards nothing further was seen or heard in that quarter, by the soldiers.

The penetrating looks of the trooper had already discovered another pile of rocks, which, jutting forward, nearly obstructed the highway that wound directly around the base.

“What the steed cannot mount, the foot of man can overcome,” exclaimed the wary partisan. Throwing himself again from the saddle, and leaping a wall of stone, he began to ascend the hill at a pace which would soon have given him a bird’s-eye view of the rocks in question, together with all their crevices. This movement was no sooner made than Lawton caught a glimpse of the figure of a man stealing rapidly from his approach and disappearing on the opposite side of the precipice.

“Spur, Sitgreaves—spur!” shouted the trooper, dashing over every impediment in pursuit, “and murder the villain as he flies.”

The former part of the request was promptly complied with; and a few moments brought the surgeon in full view of a man armed with a musket, who was crossing the road, and evidently seeking the protection of the thick wood on its opposite side.

“Stop, my friend—stop until Captain Lawton comes up, if you please,” cried the surgeon, observing him to flee with a rapidity that baffled his horsemanship. But, as if the invitation contained new terrors, the footman redoubled his efforts, nor paused even to breathe until he had reached his goal, when, turning on his heel, he discharged his musket towards the surgeon, and was out of sight in an instant. To gain the highway and throw himself in the saddle, detained Lawton but a moment, and he rode to the side of his comrade just as the figure disappeared.

“Which way has he fled?” cried the trooper.

“John,” said the surgeon, “am I not a non-combatant?”<sup>[92]</sup>

“Whither has the rascal fled?” cried Lawton, impatiently.

“Where you cannot follow—into the wood. But I repeat, John, am I not a non-combatant?”

The disappointed trooper, perceiving that his enemy had escaped him, now turned his eyes, which were flashing with anger, upon his comrade, and gradually his muscles lost their rigid compression, his brow relaxed, and his look changed from its fierce expression to the covert laughter which so

often distinguished his countenance. The surgeon sat in dignified composure on his horse, his thin body erect and his head elevated with the indignation of one conscious of having been unjustly treated.

Their desultory discourse was soon interrupted by their arrival at the cottage of Mr. Wharton. No one appearing to usher them into an apartment, the captain proceeded to the door of the parlor, where he knew visitors were commonly received. On opening it, he paused for a moment, in admiration of the scene within. The person of Colonel Wellmere first met his eye, bending towards the figure of the blushing Sarah with an earnestness of manner that prevented the noise of Lawton's entrance from being heard by either party. Certain significant signs, which were embraced at a glance by the trooper, at once made him a master of their secret, and he and the surgeon retired as silently as they had advanced.

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## CHAPTER XV.

### MISS WHARTON'S MARRIAGE INTERRUPTED.

They were met by Miss Peyton, who acquainted them of the approaching marriage of her eldest niece and Colonel Wellmere, and invited them to be present. The gentlemen bowed; and the good aunt, with an inherent love of propriety, went on to add that the acquaintance was of an old date, and the attachment by no means a sudden thing; that the consent to this sudden union of Sarah and Wellmere, and especially at a time when the life of a member of the family was in imminent jeopardy,<sup>[93]</sup> was given from a conviction that the unsettled state of the country would probably prevent another opportunity to the lovers of meeting, and a secret dread on the part of Mr. Wharton that the death of his son might, by hastening his own, leave his remaining children without a protector.

Miss Peyton now led them to the room where Lawton had left Sarah and Colonel Wellmere, and awaited the nuptials.

Wellmere, offering Sarah his hand, led her before the divine, and the ceremony began. The first words of this imposing office produced a dead stillness in the apartment; and the minister of God was about to proceed when a figure, gliding into the midst of the party, at once put a stop to the ceremony. It was the peddler. His look was bitter and ironical,<sup>[94]</sup> while a finger raised towards the divine seemed to forbid the ceremony to go any further.

“Can Colonel Wellmere waste the precious moments here, when his wife has crossed the ocean to meet him? The nights are long, and the moon bright; a few hours will take him to the city.”

Aghast at the suddenness of his extraordinary address, Wellmere for a moment lost the command of his faculties. To Sarah, the countenance of

Birch, expressive as it was, produced no terror; but the instant she recovered from the surprise of his interruption, she turned her anxious gaze on the features of the man to whom she had pledged her troth. They afforded the most terrible confirmation of all that the peddler affirmed; the room whirled round, and she fell lifeless into the arms of her aunt.

The confusion enabled the peddler to retreat with a rapidity that would baffle pursuit, had any been attempted, and Wellmere stood with every eye fixed on him, in ominous silence.

“’Tis false—’tis false as hell!” he cried, striking his forehead. “I have ever denied her claim; nor will the laws of my country compel me to acknowledge it.”

“But what will conscience and the laws of God do?” asked Lawton.

“’Tis well, sir,” said Wellmere, haughtily, and retreating towards the door, “my situation protects you now; but a time may come—”

He had reached the entry, when a slight tap on his shoulder caused him to turn his head; it was Captain Lawton, who, with a smile of peculiar meaning, beckoned him to follow. They reached the stables before the trooper spoke, when he cried aloud:

“Bring out Roanoke!”

His man appeared with the steed caparisoned<sup>[95]</sup> for its master. Lawton, coolly throwing the bridle on the neck of the animal, took his pistols from the holsters, and continued, “Here are weapons that have seen good service before to-day—aye, and in honorable hands, sir. In what better way can I serve my country than in exterminating a wretch who would blast one of her fairest daughters?”

“This injurious treatment shall meet its reward,” cried the other, seizing the offered weapon; “the blood lie on the head of him who sought it!”

“Amen! but hold a moment, sir. You are now free, and the passports of Washington are in your pocket; I give you the fire; if I fall, there is a steed that will outstrip pursuit, and I advise you to retreat without delay.”

“Are you ready?” asked Wellmere, gnashing his teeth with rage.

“Stand forward, Tom, with the lights; fire!” Wellmere fired, and the bullion flew from the epaulette of the trooper.

“Now the turn is mine,” said Lawton, deliberately leveling his pistol.

“And mine!” shouted a voice as the weapon was struck from his hand. “’Tis the mad Virginian!—fall on, my boys, and take him; this is a prize not hoped for!”

Unarmed, and surprised as he was, Lawton’s presence of mind did not desert him; he felt that he was in the hands of those from whom he was to expect no mercy; and, as four of the Skinners fell upon him at once, he used his gigantic strength to the utmost.

The struggle was short but terrific; curses and the most dreadful imprecations were uttered by the Skinners, who in vain called on more of the band, who were gazing on the combat in nerveless horror, to assist. A difficulty of breathing, from one of the combatants, was heard, accompanied by the stifled moanings of a strangled man; and directly one of the group arose from his feet, shaking himself free from the wild grasp of the others. Both Wellmere and the servant of Lawton had fled—the former to the stables, and the latter to give the alarm, leaving all in darkness.

The figure that stood erect sprang into the saddle of the unheeded charger; sparks of fire, issuing from the armed feet of the horse, gave a momentary light by which the captain was seen dashing like the wind towards the highway.

“He’s off!” cried the leader, hoarse with rage and exhaustion; “fire!—bring him down—fire, or you’ll be too late!”

“He would not fall if you had killed him,” muttered one; “I’ve known these Virginians sit their horses with two or three balls through them; aye, even after they were dead.”

“A short half hour will bring down that canting sergeant and the guard upon us,” cried the leader. “’Twill be lucky if the guns don’t turn them out.

Quick, to your posts, and fire the house in the chambers; smoking ruins are good to cover evil deeds.”

Wellmere availed himself of the opportunity, and stealing from the stable with his own charger, he was able to gain the highway unnoticed. For an instant he hesitated whether to ride towards the point where he knew the guard was stationed and endeavor to rescue the family, or, profiting by his liberty, to seek the royal army. Shame, and a consciousness of guilt, determined him to take the latter course, and he rode towards New York.

The report of the fire-arms first roused the family to the sense of a new danger, and but a moment elapsed before the leader and one more of the gang entered the room.

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# CHAPTER XVI.

## HELP WELL TIMED.

But to return to the party at the Four Corners. The veteran got his men mounted, when firing was heard.

“Hark! What is that?” said Hollister, pricking up his ears. “I’ll swear that was a human pistol, and one from our regiment. Rear rank, close to the front!” A volley of musketry now rattled in the night wind, and the sergeant exclaimed:

“March!—Quick time!”

The next instant the trampling of a horse was heard coming up the road at a rate that announced a matter of life or death.

“Stand! Who goes there?” shouted Hollister.

“Ha! Hollister, is that you?” cried Lawton; “ever ready and at your post; but where is the guard?”

“At hand, sir, and ready to follow you through thick and thin.”

“’Tis well!” said the trooper, riding up to his men; then, speaking a few words of encouragement, he led them down the valley at a rate but little less rapid than his approach.

On arriving near the gates of the Locusts, the trooper halted his party and made his arrangements for the assault. Dismounting, he ordered eight men to follow his example, and, turning to Hollister, said:

“Stand you here and guard the horses; if any attempt to pass, stop it, or cut it down, and—” The flames at this moment burst through the dormer-windows<sup>[96]</sup> and cedar roof of the cottage, and a bright light glared on the

darkness of the night. "On!" shouted the trooper, "on! Give quarter when justice is done!"

There was a startling fierceness in the voice of the trooper that reached to the heart, even amid the horrors of the cottage. The leader dropped his plunder and for a moment he stood in nerveless dread; then, rushing to the window, he threw up the sash. At this instant Lawton entered, sabre in hand, into the apartment.

"Die, miscreant!" cried the trooper, cleaving a marauder to the jaw; but the leader sprang into the lawn and escaped his vengeance.

The shrieks of the females restored Lawton to his presence of mind, and the earnest entreaty of the divine induced him to attend to the safety of the family. One more of the gang fell in with the dragoons and met his death, but the remainder had taken the alarm in season.

A loud crash in the upper apartments was succeeded by a bright light that glared through the open door, and made objects as distinct as day. Another dreadful crash shook the building to its centre. It was the falling of the roof, and the flames threw their light abroad so as to make objects visible around the cottage through the windows of the room. Frances, who was with Sarah, flew to one of them and saw the confused group that was collected on the lawn. Among them was her aunt, pointing with distraction to the fiery edifice, and apparently urging the dragoon to enter it. For the first time she comprehended their danger, and, uttering a wild shriek, she flew through the passage without consideration or object.

A dense and suffocating smoke opposed her progress. She paused to breathe, when a man caught her in his arms and bore her, in a state of insensibility, through the falling embers and darkness to the open air. The instant that Frances recovered her recollection she perceived that she owed her life to Lawton, and, throwing herself on her knees, she cried:

"Sarah! Sarah! Sarah! Save my sister, and may the blessing of God await you!"

Her strength failed, and she sank on the grass in insensibility.

By this time the flames had dispersed much of the suffocating vapor, so that the trooper was able to find the door, and in its very entrance he was met by a man supporting the insensible form of Sarah. There was but barely time to reach the lawn again before the fire broke through the windows and wrapped the whole building in a sheet of flame.

“God be praised!” ejaculated<sup>[97]</sup> the preserver of Sarah; “it would have been a dreadful death to die.”

The trooper turned from gazing at the edifice to the speaker, and, to his astonishment, he beheld the peddler.

“Captain Lawton,” said Birch, leaning in momentary exhaustion against the fence to which they had retired from the heat, “I am again in your power, for I can neither flee nor resist.”

“The cause of America is as dear to me as life,” said the trooper; “but she cannot require her children to forget gratitude and honor. Fly, unhappy man, while yet you are unseen, or it will exceed my power to save you.”

“May God prosper you, and make you victorious over your enemies!” said Birch, grasping the hand of the dragoon with iron strength that his meagre figure did not indicate.

“Hold!” said Lawton; “but a word—are you what you seem?—can you—are you?——”

“A royal spy,” interrupted Birch, averting his face, and endeavoring to release his hand.

“Then go, miserable wretch,” said the trooper, relinquishing his grasp; “either avarice or delusion has led a noble heart astray!”

The bright light from the flames reached a great distance around the ruins, but the words were hardly past the lips of Lawton, before the gaunt form of the peddler had glided over the visible space, and had plunged into the darkness beyond.

The walls of the cottage were all that was left of the building; and these, blackened by smoke, and stripped of their piazzas and ornaments, were but dreary memorials of the content and security that had so lately reigned within. The roof, together with the rest of the wood-work, had tumbled into the cellars, and pale and flitting light, ascending from their embers, shone faintly through the windows. The early flight of the Skinners left the dragoons at liberty to exert themselves in saving much of the furniture which lay scattered in heaps on the lawn, giving the finishing touch of desolation to the scene.

“Come,” said the surgeon, “the night air can do no service to these ladies, and it is incumbent on us to remove them where they can find surgical attendance and refreshment.”

To this rational proposition no objection could be raised, and the necessary orders were issued by Lawton to remove the whole party to the Four Corners.

The brief arrangements of the dragoons had prepared two apartments for the reception of the ladies, the one being intended as a sleeping-room, and situated within the other.

While leaning in the doorway, Lawton’s ear caught the sound of a horse, and the next instant a dragoon of his own troop appeared dashing up the road, as if on business of vast importance. The steed was foaming, and the rider had the appearance of having done a day’s service. Without speaking, he placed a letter in the hand of Lawton, and led his charger to the stable. The trooper knew the hand of the major, and ran his eye over the following:

“I rejoice it is the order of Washington, that the family of the Locusts are to be removed above the Highlands. They are to be admitted to the society of Captain Wharton, who waits only for their testimony to be tried. You will communicate this order, and with proper delicacy I do not doubt. The English are moving up the river; and the moment you see the Whartons in safety, break up and join your troop. There will be good service to be done when we meet, as Sir Henry<sup>[98]</sup> is reported to have sent out a real soldier in command. Reports must be made to the commandant at Peekskill, for Colonel Singleton is withdrawn to headquarters, to preside over the inquiry upon poor Wharton. Fresh orders have been sent to hang the peddler if we can take him, but they are not from the commander-in-chief. Detail a small guard with the ladies, and get into the saddle as soon as possible.

“Yours sincerely,  
“PEYTON DUNWOODIE.”

This communication changed the whole arrangement. A new stimulus was given to the Whartons by the intelligence conveyed in the letter of Dunwoodie; and Cæsar, with his horses, was once more put in requisition.

The word to march was given; and Lawton, throwing a look of sullen ferocity at the place of the Skinners’ concealment, led the way, accompanied by the surgeon in a brown study; while Sergeant Hollister and Betty brought up the rear. The day’s march was performed chiefly in silence, and the party found shelter for the night in different farm-houses.

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# CHAPTER XVII.

## CAPTAIN WHARTON'S TRIAL.

The following morning the cavalcade<sup>[99]</sup> dispersed. The wounded diverged towards the river, with the intention of taking water at Peekskill, in order to be transported to the hospital of the American army above.

The road taken by our party was not the one that communicates between the two principal cities of the State, but was a retired and unfrequented pass, that to this hour is but little known, and which, entering the hills near the eastern boundary, emerges into the plain above, many miles from the Hudson.

It would have been impossible for the tired steeds of Mr. Wharton to drag the heavy chariot up the lengthened and steep ascents which now lay before them; and a pair of country horses was procured, with but little regard to their owner's wishes, by the two dragoons, who still continued to accompany the party. With their assistance, Cæsar was enabled to advance, by slow and toilsome steps, into the bosom of the hills.

The day had been cloudy and cool, and thin fleecy clouds hung around the horizon, often promising to disperse, but as frequently disappointing Frances in the hope of catching a parting beam from the setting sun. At length a solitary gleam struck the base of the mountain on which she was gazing, and moved gracefully up its side, until, reaching the summit, it stood for a minute, forming a crown of glory to the sombre pile. With a feeling of awe at being thus unexpectedly admitted, as it were, into the secrets of that desert place, Frances gazed intently, until, among the scattered trees and fantastic rocks, something like a rude structure was seen. It was low, and so obscured by the color of its materials, that but for its roof, and the glittering of a window, it must have escaped her notice. While yet lost in the astonishment created by discovering a habitation in such a

spot, on moving her eyes she perceived another object that increased her wonder. It apparently was a human figure, but of singular mould and unusual deformity. It stood on the edge of a rock, a little above the hut, and it was no difficult task for our heroine to fancy it was gazing at the vehicles that were ascending the side of the mountain beneath her. The distance, however, was too great for her to distinguish with precision. She continued to gaze at the mysterious residence, when the tones of a bugle rang through the glens and hollows, and were reëchoed in every direction, and directly a party in the well-known uniform of the Virginians came sweeping round the point of a rock, and drew up at a short distance.

Dunwoodie dashed by the party of dragoons, threw himself from his charger, and advanced to her side. His manner was earnest and interested. In a few words he explained that he had been ordered up, with a party of Lawton's men, in the absence of the captain himself, to attend the trial of Henry, which was fixed for the morrow, and that, anxious for their safety in the rude passes of the mountain, he had ridden a mile or two in quest of the travellers. A short half-hour brought them to the door of the farm-house which the care of Dunwoodie had already prepared for their reception, and where Captain Wharton was anxiously expecting their arrival.

The friends of Henry Wharton had placed so much reliance on his innocence, that they were unable to see the full danger of his situation. The moment at length arrived, and the different actors in the approaching investigation assembled. The judges, three in number, sat by themselves, clad in the vestments of their profession, and maintaining a gravity worthy of the occasion and becoming their rank. In the centre was a man of advanced years, and whose whole exterior bore the stamp of early and long-tried military habits. This was the president of the court; and Frances, after taking a hasty and unsatisfactory view of his associates, turned to his benevolent countenance as to the harbinger<sup>[100]</sup> of mercy to her brother. There was a melting and subdued expression in the features of the veteran, that, contrasted with the rigid decency and composure of the others, could not fail to attract her notice. His associates were selected from the Eastern troops, who held the fortresses of West Point<sup>[101]</sup> and the adjacent passes; they were men who had attained the meridian<sup>[102]</sup> of life, and the eye sought

in vain the expression of any passion or emotion on which it might seize as an indication of human infirmity. In their demeanor there was a mild, but a grave, intellectual reserve.

Before these arbiters of his fate Henry Wharton was ushered under the custody of armed men. A profound and awful silence succeeded his entrance, and the blood of Frances chilled as she noted the grave character of the whole proceedings. Two of the judges sat in grave reserve, fixing their eyes on the object of their investigation; but the president continued gazing round with uneasy, convulsive motions of the muscles of the face, that indicated a restlessness foreign to his years and duty. The silence, and the expectation in every eye, at length struck him, and making an effort to collect himself, he spoke, in the tone of one used to authority.

“Bring forth the prisoner,” he said, with a wave of the hand.

Frances turned for a moment, in grateful emotion, as the deep and perturbed breathings of Dunwoodie reached her ears; but her brother again concentrated all her interest in one feeling of intense care. In the background were arranged the inmates of the family who owned the dwelling, and behind them, again, was a row of shining faces of ebony, glistening with pleased wonder. Among these was the faded lustre of Cæsar Thompson’s countenance.

“You are said,” continued the president, “to be Henry Wharton, a captain in his Britannic Majesty’s Sixtieth regiment of foot.”

“I am.”

“It is an accusation against you, that, being an officer of the enemy, you passed the pickets of the American army at the White Plains, in disguise, on the 29th of October last, whereby you are suspected of views hostile to the interests of America, and have subjected yourself to the punishment of a spy.”

The mild but steady tones of the speaker, as he slowly repeated the substance of this charge, were full of authority. The accusation was so plain, the facts so limited, the proof so obvious, and the penalty so well

established, that escape seemed impossible. But Henry replied with earnest grace:

“That I passed your pickets in disguise is true; but——”

“Peace!” interrupted the president; “the usages of war are stern enough in themselves; you need not aid them in your own condemnation.”

“The prisoner can retract that declaration, if he please,” remarked another judge. “His confession, if taken, goes fully to prove the charge.”

“I retract nothing that is true,” said Henry, proudly.

“You are at liberty to explain what your motives were in entering the ground held by our army, in disguise,” said the other judge, with a slight movement of the muscles of his face.

“I am the son of this aged man before you,” continued Henry. “It was to visit him that I encountered the danger. Besides, the country below is seldom held by your troops, and its very name implies a right to either party to move at pleasure over its territory.”

“Its name as neutral ground is unauthorized by law; it is an appellation<sup>[103]</sup> that originates with the condition of the country. But wherever an army goes, it carries its rights along, and the first is the ability to protect itself.”

“I am no casuist,<sup>[104]</sup> sir,” returned the youth; “but I feel that my father is entitled to my affection, and I would encounter greater risks to prove it to him in his old age.”

“A very commendable spirit,” cried the veteran. “Come, gentlemen, this business brightens. I confess, at first it was very bad, but no man can censure him for desiring to see his parent.”

“And have you proof that such only was your intention?”

“Yes—here,” said Henry, admitting a ray of hope; “here is proof—my father, my sister, Major Dunwoodie, all know it.”

“Then, indeed,” returned the immovable judge, “we may be able to save you. It would be well, sir, to examine further into this business.”

“Certainly,” said the president, with alacrity. “Let the elder Mr. Wharton approach and take the oath.”

The father made an effort at composure, and, advancing with a feeble step, he complied with the necessary forms of the court.

“You are the father of the prisoner?” said Colonel Singleton, in a subdued voice.

“He is my only son.”

“And what do you know of his visit to your house on the twenty-ninth day of October last?”

“He came, as he told you, to see me and his sisters.”

“Was he in disguise?” asked the other judge.

“He did not wear the uniform of the Sixtieth.”

“To see his sisters, too!” said the president, with great emotion. “Have you daughters, sir?”

“I have two. Both are in this house.”

“Had he a wig?” interrupted the officer.

“There was some such thing, I do believe, upon his head.”

“And how long had you been separated?” asked the president.

“One year and two months.”

“Did he wear a loose great-coat of coarse materials?” inquired the officer, referring to a paper that contained the charges.

“There was an overcoat.”

“And you think it was to see you only that he came out?”

“Me and my daughters.”

“A boy of spirit,” whispered the president to his silent comrade. “I see but little harm in such a freak; ’twas imprudent, but then it was kind.”

“Do you know that your son was intrusted with no commission from Sir Henry Clinton, and that his visit to you was not merely a cloak to other designs?”

“How can I know it?” said Mr. Wharton, in alarm. “Would Sir Henry trust me with such business?”

“Know you anything of this pass?” exhibiting the paper that Dunwoodie had retained when Wharton was taken.

“Nothing—upon my honor, nothing,” cried the father, shrinking from the paper as from contagion.<sup>[105]</sup>

“On your oath?”

“Nothing.”

“Have you other testimony? This does not avail you, Captain Wharton. You have been taken in a situation where your life is forfeited. The labor of proving your innocence rests with yourself. Take time to reflect, and be cool.”

There was a frightful calmness in the manner of this judge that appalled the prisoner. In the sympathy of Colonel Singleton, he could easily lose sight of his danger; but the obdurate and collected air of the others was ominous of his fate. He continued silent, casting imploring glances towards his friends.

Dunwoodie understood the appeal, and offered himself as a witness. He was sworn, and desired to relate what he knew. His statement did not materially alter the case, and Dunwoodie felt that it could not. To him personally but little was known, and that little rather militated against the safety of Henry than otherwise. His account was listened to in silence, and the significant shake of the head that was made by the silent member too plainly told what effect it had made.

“Still you think that the prisoner had no other object than what he has avowed?” said the president, when he had ended.

“None other, I will pledge my life,” cried the major.

“Will you swear it?” asked the immovable judge.

“How can I? God alone can see the heart. But I have known this gentleman from a boy; deceit never formed part of his character. He is above it.”

“You say that he escaped and was taken in open arms?” said the president.

“He was; nay, he received a wound in the combat.”

To Henry there now remained but little hope; his confidence in his security was fast ebbing, but with an indefinite expectation of assistance from the loveliness of his sister he fixed an earnest gaze on the pallid features of Frances. She arose, and, with a tottering step, moved towards the judges; the paleness of her cheek continued but for a moment, and gave place to a flush of fire, and with a light but firm tread she stood before them.

“To you, then, your brother previously communicated his intention of paying your family a secret visit?”

“No, no!” said Frances, pressing her hand to her head, as if to collect her thoughts; “he told me nothing—we knew not of the visit until he arrived. But can it be necessary to explain to gallant men that a child would incur hazard to meet his only parent, and that in times like these, and in a situation like ours?”

“But was this the first time? Did he never even talk of doing so before?” inquired the colonel, leaning towards her with paternal interest.

“Certainly, certainly,” cried Frances, catching the expression of his own benevolent countenance. “This is but the fourth of his visits.”

“I knew it!” exclaimed the veteran, rubbing his hands with delight; “an adventurous, warm-hearted son—I warrant me, gentlemen—a fiery soldier in the field! In what disguises did he come?”

“In none, for none were then necessary; the royal troops covered the country and gave him safe passage.”

“And was this the first of his visits out of the uniform of his regiment?” asked the colonel, in a suppressed voice, avoiding the penetrating looks of his companions.

“Oh, the very first!” exclaimed the eager girl; “his first offence, I do assure you, if offence it be.”

“But you wrote him—you urged the visit; surely, young lady, you wished to see your brother?” added the impatient colonel.

“That we wished for it, and prayed for it—oh, how fervently we prayed for it!—is true; but to have communion with the royal army would have endangered our father, and we dared not.”

“Did he leave the house until taken, or had he intercourse with any out of your own dwelling?”

“With no one excepting our neighbor, the peddler Birch.”

“With whom?” exclaimed the colonel, turning pale, and shrinking as from the sting of an adder.

Dunwoodie groaned aloud, and, striking his head with his hand, cried out in piercing tones, “He is lost!” and rushed from the apartment.

“But Harvey Birch,” repeated Frances, gazing wildly at the door through which her lover had disappeared.

“Harvey Birch!” echoed all the judges. The two immovable members of the court exchanged looks, and threw an inquisitive glance at the prisoner.

“To you, gentlemen, it can be no new intelligence to hear that Harvey Birch is suspected of favoring the royal cause,” said Henry, again advancing before the judges, “for he has already been condemned by your tribunals to the fate that I see now awaits myself. I will therefore explain that it was by his assistance I procured the disguise and passed your pickets; but to my

dying moments and with my dying breath I will avow that my intentions were as pure as the innocent beings before you.”

“Captain Wharton,” said the president, solemnly, “the enemies of American liberty have made mighty and subtle efforts to overthrow our power. A more dangerous man, for his means and education, is not ranked among our foes than this peddler of Westchester. He is a spy—artful, delusive, and penetrating beyond the abilities of his class. Indeed, young man, this is a connection that may prove fatal to you.”

The honest indignation that beamed on the countenance of the aged warrior was met by a look of perfect conviction on the part of his comrades.

“I have ruined him!” cried Frances, clasping her hands in terror.

“Gentlemen, what is your pleasure?” asked the president.

One of the judges placed in his hand a written sentence, and declared it to be the opinion of himself and his companion.

It briefly stated that Henry Wharton had been detected in passing the lines of the American army as a spy, and in disguise.

That thereby, according to the laws of war, he was liable to suffer death, and that this court adjudge him to the penalty, recommending him to be executed, by hanging, before nine o’clock on the following morning.

“This is short notice,” said the veteran, holding the pen in his hand, in a suspense that had no object; “not a day to fit one so young for heaven.”

“The royal officers gave Hale<sup>[106]</sup> but an hour,” returned his comrade; “we have granted the usual time. But Washington has the power to extend it, or to pardon.”

“Then to Washington will I go,” cried the colonel, returning the paper with his signature; “and if the services of an old man like me, or that brave boy of mine, entitle me to his ear, I will yet save the youth.”

So saying, he departed, full of the generous intentions in favor of Henry Wharton.



## CHAPTER XVIII.

### MR. HARPER IS SOUGHT BUT NOT FOUND.

The sentence of the court was communicated with proper tenderness to the prisoner, and after giving a few necessary instructions to the officer in command, and despatching a courier to headquarters with their report, the remaining judges mounted and rode to their own quarters.

A few hours were passed by the prisoner, after his sentence was received, in the bosom of his family.

Dunwoodie, from an unwillingness to encounter the distress of Henry's friends, and a dread of trusting himself within its influence, had spent the time walking by himself, in keen anxiety, at a short distance from the dwelling. To him the rules of service were familiar, and he was more accustomed to consider his general in the capacity of a ruler than as exhibiting the characteristics of the individual.

While pacing with hurried step through the orchard, laboring under these constantly recurring doubts, Dunwoodie saw the courier approaching; leaping the fence, he stood before the trooper.

"What news?" cried the major, the moment the soldier stopped his horse.

"Good!" exclaimed the man; and feeling no hesitation to trust an officer so well known as Major Dunwoodie, he placed the paper in his hands, as he added: "But you can read it, sir, for yourself."

Dunwoodie paused not to read, but flew, with the elastic spring of joy, to the chamber of the prisoner. The sentinel knew him, and he was suffered to pass without question.

"O Peyton," cried Frances, as he entered the apartments, "you look like a messenger from heaven. Bring you tidings of mercy?"

“Here, Frances—here, Henry—here, dear cousin Jeanette,” cried the youth, as with trembling hands he broke the seal; “here is the letter itself, directed to the captain of the guard. But listen!”

All did listen with intense anxiety; and the pang of blasted hope was added to their misery, as they saw the glow of delight which had beamed on the countenance of the major give place to a look of horror. The paper contained the sentence of the court, and underneath was written these simple words:

*“Approved—Geo. Washington.”*

“He’s lost, he’s lost!” cried Frances, sinking into the arms of her aunt.

“My son, my son!” sobbed the father, “there is mercy in heaven, if there is none on earth. May Washington never want that mercy he thus denies to my innocent child!”

“There is yet time to see Washington again,” said Miss Peyton, moving towards the door; and then, speaking with extreme dignity, she continued: “I will go myself; surely he must listen to a woman from his own colony; and we are in some degree connected with his family.”

“Why not apply to Mr. Harper?” said Frances, recollecting the parting words of their guest for the first time.

“Harper!” echoed Dunwoodie, turning towards her with the swiftness of lightning; “what of him? Do you know him?”

“It is in vain,” said Henry, drawing him aside; “Frances clings to hope with the fondness of a sister. Retire, my love, and leave me with my friend.”

But Frances read an expression in the eye of Dunwoodie that chained her to the spot. After struggling to command her feelings, she continued:

“He stayed with us for a few days; he was with us when Henry was arrested.”

“And—and—did you know him?”

“Nay,” continued Frances, catching her breath as she witnessed the intense interest of her lover, “we knew him not; he came to us in the night, a stranger, and remained with us during the severe storm; but he seemed to take an interest in Henry, and promised him his friendship.”

“What!” exclaimed the youth, in astonishment; “did he know your brother?”

“Certainly; it was at his request that Henry threw aside his disguise.”

“But,” said Dunwoodie, turning pale with suspense, “he knew him not as an officer of the royal army?”

“Indeed he did,” cried Miss Peyton; “and he cautioned us against this very danger.”

Dunwoodie caught up the fatal paper, that lay where it had fallen from his own hands, and studied its characters intently. Something seemed to bewilder his brain. He passed his hand over his forehead, while each eye was fixed on him in dreadful suspense—all feeling afraid to admit those hopes anew that had been so sadly destroyed.

“What said he? what promised he?” at length Dunwoodie asked, with feverish impatience.

“He bid Henry apply to him when in danger, and promised to requite the son for the hospitality of the father.”

“Said he this, knowing him to be a British officer?”

“Most certainly; and with a view to this very danger.”

“Then,” cried the youth aloud, and yielding to his rapture, “then you are safe—then I will save him; yes, Harper will never forget his word.”

“But has he the power to?” said Frances. “Can he move the stubborn purpose of Washington?”

“Can he! If he cannot,” shouted the youth, “if he cannot, who can? Greene,<sup>[107]</sup> and Heath,<sup>[108]</sup> and the young Hamilton<sup>[109]</sup> are nothing compared to

this Harper. But,” rushing to his mistress, and pressing her hands convulsively, “repeat to me—you say you have his promise?”

“Surely, surely, Peyton; his solemn, deliberate promise, knowing all the circumstances.”

“Rest easy,” cried Dunwoodie, holding her to his bosom for a moment, “rest easy, for Henry is safe.”

He waited not to explain, but darting from the room, he left the family in amazement. They continued in silent wonder until they heard the feet of his charger as he dashed from the door with the speed of an arrow.

A long time was spent after this abrupt departure of the youth, by the anxious friends he had left, in discussing the probability of his success. The confidence of his manner had, however, communicated to his auditors something of his own spirit. Each felt the prospects of Henry were again brightening, and with their reviving hopes they experienced a renewal of spirits, which in all but Henry himself amounted to pleasure. Frances reposed in security on the assurance of Dunwoodie; believing her lover able to accomplish everything that man could do and retaining a vivid recollection of the manner and benevolent appearance of Harper, she abandoned herself to all the felicity of renovated hope.

From the window where she stood, the pass that they had travelled through the Highlands was easily to be seen; and the mountain which held on its summit the mysterious hut was directly before her. Its sides were rugged and barren; huge and apparently impassable barriers of rocks presenting themselves through the stunted oaks, which, stripped of their foliage, were scattered over its surface. The base of the hill was not half a mile from the house, and the object which attracted the notice of Frances was the figure of a man emerging from behind a rock of remarkable formation, and as suddenly disappearing. The manœuvre was several times repeated, as if it were the intention of the fugitive (for such by his air he seemed to be) to reconnoitre the proceedings of the soldiery, and assure himself of the position of things on the plain. Notwithstanding the distance, Frances instantly imbibed the opinion that it was Birch, who had so connected

himself with the mysterious deportment of Harper, within her imagination, that under circumstances of less agitation than those in which she had labored since her arrival, she would have kept her suspicions to herself. After gazing for a long time at the point where she had last seen the figure, in the vain expectation of its reappearance, she turned to her friends in the apartment.

Dunwoodie soon made his appearance, but his air was that of neither success nor defeat, but of vexation. He took the hand of Frances, in the fulness of her heart extended towards him, but instantly relinquishing it, threw himself into a chair, in evident fatigue.

“You have failed,” said Wharton, with a bound of his heart, but an appearance of composure.

“Have you seen Harper?” cried Frances, turning pale.

“I have not; I crossed the river in one boat as he must have been coming to this side in another. I returned without delay to relieve your uneasiness. I will this night see him and bring a respite for Henry.”

“But you saw Washington?” asked Miss Peyton.

“The commander-in-chief had left his quarters.”

“But, Peyton,” cried Frances, in returning terror, “if they should not see each other, it will be too late. Harper alone will not be sufficient.”

“You say that he promised to assist Henry?”

“Certainly, of his own accord, and in requital for the hospitality he had received.”

“I like not that word ‘hospitality’—it has an empty sound; there must be something more reasonable to tie Harper. I dread some mistake: repeat to me all that passed.”

Frances, in a hurried and earnest voice, complied with his request. She related particularly the manner of his arrival at the Locusts, the reception

that he received, and the events that passed, as minutely as her memory could supply her with the means.

As she alluded to the conversation that occurred between her father and his guest, the major smiled but remained silent. She then gave a detail of Henry's arrival, and the events of the following day. She dwelt upon the part where Harper desired her brother to throw aside his disguise, and recounted, with wonderful accuracy, his remarks upon the hazard of the step that the youth had taken. She even remembered a remarkable expression of his to her brother, "that he was safer from Harper's knowledge of his person, than he would be without it." Frances mentioned, with the warmth of youthful admiration, the benevolent character of his deportment to herself, and gave a minute relation of his adieus to the whole family.

Dunwoodie at first listened with grave attention; evident satisfaction followed as she proceeded. When she spoke of herself in connection with her guest, he smiled with pleasure, and as she concluded, he exclaimed with delight:

"We are safe!—we are safe!"

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## CHAPTER XIX.

### WHAT CAME OF A REVEREND GENTLEMAN'S VISIT TO CAPTAIN WHARTON.

But he was interrupted by the opening of the door by the corporal of the guard, who stated that the woman of the house desired admittance.

“Admit the woman,” said Dunwoodie, sternly.

“Here is a reverend gentleman below, come to soothe the parting soul, in place of our own divine, who is engaged with an appointment that could not be put aside.”

“Show him in,” said Henry, with feverish impatience.

Dunwoodie spoke a few words with Henry in an undertone, and hastened from the apartment, followed by Frances. The subject of their conversation was a wish expressed by the prisoner for a clergyman of his own persuasion.

The person who was ushered into the apartment, preceded by Cæsar, and followed by the matron, was a man beyond the middle age, or who might rather be said to approach the down-hill of life.

In stature he was above the ordinary size of men, though his excessive leanness might contribute in deceiving as to his height; his countenance was sharp and unbending, and every muscle seemed set in rigid compression. No joy or relaxation appeared ever to have dwelt on features that frowned habitually, as if in detestation of the vices of mankind. The brows were beetling, dark, and forbidding, giving the promise of eyes of no less repelling expression; but the organs were concealed beneath a pair of enormous green goggles, through which he glared around with a fierceness that denounced the coming day of wrath. All was fanaticism,<sup>[110]</sup>

uncharitableness, and denunciation. Long, lank hair, a mixture of gray and black, fell down his neck, and in some degree obscured the sides of his face, and, parting on his forehead, fell in either direction in straight and formal screens. On the top of this ungraceful exhibition was laid, impending forward, so as to overhang in some measure the whole fabric, a large hat of three equal cocks. His coat was of a rusty black, and his breeches and stockings were of the same color; his shoes without lustre, and half concealed beneath huge plated buckles.

He stalked into the room, and giving a stiff nod with his head, took the chair offered him by the black, in dignified silence. For several minutes no one broke this ominous pause in the conversation; Henry feeling a repugnance<sup>[111]</sup> to his guest that he was endeavoring to conquer, and the stranger himself drawing forth occasional sighs and groans that threatened a dissolution of the unequal connection between his sublimated<sup>[112]</sup> soul and its ungainly tenement. During this deathlike preparation, Mr. Wharton, with a feeling nearly allied to that of his son, led Sarah from the apartment. His retreat was noticed by the divine, in a kind of scornful disdain, who began to hum the air of a popular psalm tune, giving it the full richness of the twang that distinguished the Eastern psalmody.

“My presence disturbs you,” said Miss Peyton, rising; “I will leave you with my nephew, and offer those prayers in private that I did wish to mingle with his.”

So saying, she withdrew, followed by the landlady.

The minister stood erect, with grave composure, following with his eye the departure of the females. A third voice spoke.

“Who’s that?” cried the prisoner, in amazement, gazing around the room in quest of the speaker.

“It is I, Captain Wharton,” said Harvey Birch, removing the spectacles, and exhibiting his piercing eyes shining under a pair of false eyebrows.

“Good Heaven—Harvey!”

“Silence,” said the peddler, solemnly; “’tis a name not to be mentioned, and least of all here, within the heart of the American army.” Birch paused and gazed around him for a moment, with an emotion exceeding the base passion of fear, and then continued in a gloomy tone: “There are a thousand halts in that very name, and little hope would there be left me of another escape, should I be again taken. This is a fearful venture that I am making; but I could not sleep in quiet, and know that an innocent man was about to die the death of a dog, when I might save him.”

“No,” said Henry, with a glow of generous feeling on his cheek; “if the risk to yourself be so heavy, retire as you came, and leave me to my fate. Dunwoodie is making, even now, powerful exertions in my behalf; and if he meets with Mr. Harper in the course of the night, my liberation is certain.”

“Harper!” echoed the peddler, remaining with his hands raised, in the act of replacing his spectacles; “what do you know of Harper, and why do you think he will do you service?”

“I have his promise; you remember our recent meeting in my father’s dwelling, and he then gave me an unasked promise to assist me.”

“Yes; but do you know him?—that is, why do you think he has the power, or what reason have you for believing he will remember his word?”

“If there ever was the stamp of truth or simple honest benevolence in the countenance of man, it shone in his,” said Henry; “besides, Dunwoodie has powerful friends in the rebel army, and it would be better that I take the chance where I am, than thus to expose you to certain death, if detected.”

“Captain Wharton,” said Birch, “if I fail, you all fail. No Harper nor Dunwoodie can save your life; unless you get out with me, and that within the hour, you die to-morrow on the gallows of a murderer. Cæsar met me as he was going on his errand this morning, and with him I laid the plan which, if executed as I wish, will save you—otherwise you are lost; and again I tell you, that no power on earth, not even Washington, can save you.”

“I submit,” said the prisoner, yielding to his earnest manner, and goaded by his fears that were thus awakened anew.

The peddler beckoned him to be silent, and walking to the door, opened it, with the stiff, formal air with which he had entered the apartment.

“Friend, let no one enter,” he said to the sentinel; “we are about to go to prayer, and would wish to be alone.”

“I don’t know that any will wish to interrupt you,” returned the soldier, with a waggish leer of the eye; “but, should they be so disposed, I have no power to stop them, if they be of the prisoner’s friends.”

“Have you not the fear of God before your eyes?” said the pretended priest. “I tell you, as you will dread punishment at the last day, to let none of the idolatrous communion enter, to mingle in the prayers of the righteous.”

“If you want to be alone, have you no knife to stick over the door-latch, that you must have a troop of horse to guard your meeting-house?”

The peddler took the hint, and closed the door immediately, using the precaution suggested by the dragoon.

“A faint heart, Captain Wharton, would do but little here. Come, here is a black shroud for your good-looking countenance,” taking, at the same time, a parchment mask, and fitting it to the face of Henry. “The master and the man must change places for a season.”

“I don’t t’ink he look a bit like me,” said Cæsar, with disgust, as he surveyed his young master with his new complexion.

“Stop a minute, Cæsar,” said the peddler, with a drollery that at times formed part of his manner, “till we get on the wool.”

“He worse than ebber now,” cried the discontented African. “A t’ink colored man like a sheep! I nevver see sich a lip, Harvey; he most as big as a sausage!”

“There is but one man in the American army who could detect you, Captain Wharton,” said the peddler.

“And who is he?”

“The man who made you prisoner. He would see your white skin through a plank. But strip, both of you; your clothes must be exchanged from head to foot.”

Cæsar, who had received minute instructions from the peddler in their morning interview, immediately commenced throwing aside his coarse garments, which the youth took up and prepared to invest himself with.

In the manner of the peddler there was an odd mixture of care and humor. “Here, captain,” he said, taking up some loose wool, and beginning to stuff the stockings of Cæsar, which were already on the legs of the prisoner; “some judgment is necessary in shaping this limb. You will display it on horseback; and the southern dragoons are so used to the brittle-shins that, should they notice your well-turned calf, they’d know at once it never belonged to a black.”

“Golly!” said Cæsar, with a chuckle that exhibited a mouth open from ear to ear, “Massa Harry breeches fit.”

“Anything but your leg,” said the peddler, coolly pursuing the toilet of Henry. “Slip on the coat, captain, over all. And here, Cæsar, place this powdered wig over your curls, and be careful and look out of the window whenever the door is open, and on no account speak, or you will betray all.”

“I s’pose Harvey t’ink a colored man has no tongue like oder folk,” grumbled the black, as he took the station assigned him.

Everything was now ready for action, and the peddler very deliberately went over the whole of his injunctions to the two actors in the scene. The captain he conjured to dispense with his erect military carriage, and for a season to adopt the humble paces of his father’s negro; and Cæsar he enjoined to silence and disguise, so long as he could possibly maintain them. Thus prepared, he opened the door and called aloud to the sentinel, who had retired to the farthest end of the passage.

“Let the woman of the house be called,” said Harvey, in the solemn key of the assumed character; “and let her come alone. The prisoner is in a happy

train of meditation, and must not be led from his devotions.”

Cæsar sank his face between his hands; and when the soldier looked into the apartment, he thought he saw his charge in deep abstraction. Casting a glance of huge contempt at the divine, he called aloud for the good woman of the house. She hastened at the summons, with earnest zeal, entertaining a secret hope that she was to be admitted to the gossip of a death-bed repentance.

“Sister,” said the minister in the authoritative tones of a master, “have you in the house ‘The Christian Criminal’s Last Moments, or Thoughts on Eternity, for them who die a violent death’?”

“I never heard of the book!” said the matron in astonishment.

“’Tis not unlikely; there are many books you have never heard of; it is impossible for this poor penitent to pass in peace, without the consolation of that volume. One hour’s reading in it is worth an age of man’s preaching.”

“Bless me, what a treasure to possess!—when was it put out?”

“It was first put out at Geneva<sup>[113]</sup> in the Greek language, and then translated at Boston. It is a book, woman, that should be in the hands of every Christian, especially such as die upon the gallows. Have a horse prepared instantly for this black, who shall accompany me to my brother, and I will send down the volume yet in season; brother, compose thy mind, you are now in the narrow path to glory.”

Cæsar wriggled a little in his chair, but he had sufficient recollection to conceal his face with hands that were, in their turn, concealed by gloves. The landlady departed, to comply with this very reasonable request, and the group of conspirators were again left to themselves.

“This is well,” said the peddler; “but the difficult task is to deceive the officer who commands the guard—he is lieutenant to Lawton, and has learned some of the captain’s own cunning in these things. Remember, Captain Wharton,” continued he with an air of pride, “that now is the moment when everything depends on our coolness.”

“My fate can be made but little worse than it is at present, my worthy fellow,” said Henry; “but for your sake I will do all that in me lies.”

The man soon returned, and announced that the horses were at the door. Harvey gave the captain a glance, and led the way down the stairs, first desiring the women to leave the prisoner to himself, in order that he might digest the wholesome mental food that he had so lately received.

A rumor of the odd character of the priest had spread from the sentinel at the door to his comrades; so that when Harvey and Wharton reached the open space before the building, they found a dozen idle dragoons loitering about with waggish intention of quizzing the fanatic and employed in affected admiration of the steeds.

“A fine horse!” said the leader in this plan of mischief; “but a little low in flesh; I suppose from hard labor in your calling.”

“What are you at there, scoundrels?” cried Lieutenant Mason, as he came in sight from a walk he had taken to sneer at the evening parade of the regiment of militia. “Away with every man of you to your quarters, and let me find that each horse is cleaned and littered when I come round.” The sound of the officer’s voice operated like a charm, and no priest could desire a more silent congregation, although he might possibly have wished for one that was more numerous. Mason had not done speaking, when it was reduced to the image of Cæsar only. The peddler took the opportunity to mount, but he had to preserve the gravity of his movements, for the remark of the troopers upon the condition of their beasts was but too just, and a dozen dragoon horses stood saddled and bridled at hand to receive their riders at a moment’s warning.

“Well, have you bitted the poor fellow within,” said Mason, “that he can take his last ride under the curb of divinity, old gentleman?”

“There is evil in thy conversation, profane man,” cried the priest, raising his hands and casting his eyes upwards in holy horror; “so I will depart from thee unhurt, as Daniel<sup>[114]</sup> was liberated from the lions’ den.”

“Off with you, for a hypocritical,<sup>[115]</sup> psalm-singing, canting rogue in disguise,” said Mason scornfully. “By the life of Washington! it worries an honest fellow to see such voracious<sup>[116]</sup> beasts of prey ravaging a country for which he sheds his blood. If I had you on a Virginian plantation for a quarter of an hour, I’d teach you to worm the tobacco with the turkeys.”

“I leave you, and shake the dust off my shoes, that no remnant of this wicked hole may tarnish the vestments of the godly!”

“Start, or I will shake the dust from your jacket, designing knave! But hold! whither do you travel, master blackey, in such godly company?”

“He goes,” said the minister, “to return with a book of much condolence to the sinful youth above. Would you deprive a dying man of the consolation of religion?”

“No, no; poor fellow, his fate is bad enough. But harkee, Mr. Revelations, my advice is that you never trust that skeleton of yours among us again, or I will take the skin off and leave you naked.”

“Out upon thee for a reviler and scoffer of goodness!” said Birch, moving slowly, and with a due observance of clerical dignity, down the road, followed by the imaginary Cæsar.

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## CHAPTER XX.

### THE ALARM AND THE PURSUIT.

“Corporal of the guard! corporal of the guard!” shouted the sentinel in the passage to the chambers, “corporal of the guard! corporal of the guard!”

The subaltern flew up the narrow stairway that led to the room of the prisoner, and demanded the meaning of the outcry.

The soldier was standing at the open door of the apartment, looking in with a suspicious eye on the supposed British officer. On observing his lieutenant, he fell back with habitual respect; and replied, with an air of puzzled thought:

“I don’t know, sir, but just now the prisoner looked queer. Ever since the preacher has left him, he don’t look as he used to do—but,” gazing intently over the shoulder of his officer, “it must be him, too! There is the same powdered head, and the darn in the coat, where he was hit the day we had the last brush with the enemy.”

“And then all this noise is occasioned by your doubting whether that poor gentleman is your prisoner or not, is it, sirrah? Who do you think it can be else?”

“I don’t know who else it can be,” returned the fellow, sullenly; “but he has grown thicker and shorter, if it is he; and see for yourself, sir, he shakes all over, like a man in an ague.”

This was but too true. Cæsar was an alarmed auditor of this short conversation, and, from congratulating himself upon the dexterous escape of his young master, his thoughts were very naturally beginning to dwell upon the probable consequences to his own person. The pause that succeeded the last remark of the sentinel in no degree contributed to the

restoration of the faculties. Lieutenant Mason was busied in examining with his own eyes the suspected person of the black, and Cæsar was aware of the fact by stealing a look through a passage under one of his arms, that he had left expressly for the purpose of reconnoitering.<sup>[117]</sup>

Captain Lawton would have discovered the fraud immediately, but Mason was by no means so quick-sighted as his commander. He therefore turned rather contemptuously to the soldier, and, speaking in an undertone, observed:

“That anabaptist, methodistical, Quaker, psalm-singing rascal has frightened the boy with his farrago<sup>[118]</sup> about flames and brimstone. I’ll step in and cheer him with a little rational conversation.”

“I have heard of fear making a man white,” said the soldier, drawing back, and staring as if his eyes would start from their sockets, “but it has changed the royal captain to a black!”

The truth was that Cæsar, unable to hear what Mason uttered in a low voice, and having every fear aroused in him by what had already passed, incautiously removed the wig a little from one of his ears, in order to hear the better, without in the least remembering that the color might prove fatal to his disguise. The sentinel had kept his eyes fastened on his prisoner, and noticed the action. The attention of Mason was instantly drawn to the same object; and, forgetting all delicacy for a brother officer in distress, or, in short, forgetting everything but the censure that might alight on his corps, the lieutenant sprang forward and seized the terrified African by the throat; for no sooner had Cæsar heard his color named than he knew that his discovery was certain, and, at the first sound of Mason’s heavy boot on the floor, he arose from his seat and retreated precipitately<sup>[119]</sup> to a corner of the room.

“Who are you?” cried Mason, dashing the head of the man against the angle of the wall at each interrogatory. “Who are you, and where is the Englishman? Speak, thou thunder-cloud! Answer me, you jackdaw, or I’ll hang you on the gallows of the spy!”

Cæsar continued firm. Neither the threats nor the blows could extract any reply, until the lieutenant, by a very natural transition in the attack, sent his heavy boot forward in a direction that brought it in direct contact with the most sensitive part of the negro—his shin. The most obdurate heart could not have exacted further patience, and Cæsar instantly gave in. The first words he spoke were:

“Golly! Massa, you t’ink I got no feelin’?”

“By heavens!” shouted the lieutenant, “it is the negro himself! Scoundrel! where is your master, and who was the priest?”

While he was speaking as if about to renew the attack, Cæsar cried aloud for mercy, promising to tell all he knew.

“Who was the priest?” repeated the dragoon, drawing back his formidable<sup>[120]</sup> leg and holding it in threatening suspense.

“Harvey, Harvey!” cried Cæsar, dancing from one leg to the other, as he thought each member in turn might be assailed.

“Harvey who, you black villain?” cried the impatient lieutenant, as he executed a full measure of vengeance by letting his leg fly.

“Birch!” shrieked Cæsar, falling on his knees, the tears rolling in large drops over his face.

“Harvey Birch!” echoed the trooper, hurling the black from him and rushing from the room. “To arms! To arms! Fifty guineas for the life of the peddler spy—give no quarter to either. Mount! Mount! To arms! To horse!”

The first impulse of Henry was, certainly, to urge the beast he rode to his greatest speed at once. But the forward movement that the youth made for this purpose was instantly checked by the peddler. Henry reluctantly restrained his impatience and followed the direction of the peddler. His imagination, however, continually alarmed him with the fancied sounds of pursuit.

“What see you, Harvey?” he cried, observing the peddler to gaze towards the building they had left with ominous interest; “what see you at the house?”

“That which bodes us no good,” returned the peddler. “Throw aside the mask and wig; you will need all your senses without much delay. Throw them in the road. There are none before us that I dread, but there are those behind who will give us a fearful race! Now ride, Captain Wharton, for your life, and keep at my heels.”

The instant that Harvey put his horse to his speed, Captain Wharton was at his heels urging the miserable animal he rode to the utmost. A very few jumps convinced the captain that his companion was fast leaving him, and a fearful glance thrown behind informed him that his enemies were as speedily approaching.

“Had we not better leave our horses?” said Henry, “and make for the hills across the fields on our left? The fence will stop our pursuers.”

“That way lies the gallows,” returned the peddler; “these fellows go three feet to our two, and would mind the fences no more than we do these ruts; but it is a short quarter to the turn, and there are two roads behind the wood. They may stand to choose until they can take the track, and we shall gain a little upon them there.”

“But this miserable horse is blown already,” cried Henry, urging his beast with the aid of the bridle, at the same time that Harvey aided his efforts by applying the lash of a heavy riding-whip he carried; “he will never stand it for half a mile farther.”

“A quarter will do; a quarter will do,” said the peddler; “a single quarter will save us, if you follow my directions.”

Somewhat cheered by the cool and confident manner of his companion, Henry continued silently urging his horse forward. Soon the captain again proposed to leave their horses and dash into the thicket.

“Not yet, not yet,” said Birch in a low voice; “the road falls from the top of this hill as steep as it rises; first let us gain the top.” While speaking, they

reached the desired summit, and both threw themselves from their horses, Henry plunging into the thick underwood, which covered the side of the mountain for some distance above them. Harvey stopped to give each of their beasts a few severe blows of his whip, that drove them headlong down the path on the other side of the eminence, and then followed his example.

The peddler entered the thicket with a little caution, and avoided, as much as possible, rustling or breaking the branches in his way. There was but time only to shelter his person from view, when a dragoon led up the ascent, and on reaching the height, he cried aloud:

“I saw one of their horses turning the hill this minute!”

“Drive on; spur forward, my lads,” shouted Mason; “give the Englishman quarter, but cut the peddler down, and make an end of him.”

“Now,” said the peddler, rising from the cover to reconnoitre, and standing for a moment in suspense, “all that we gain is clear gain; for, as we go up, they go down. Let us be stirring.”

“But will they not follow us, and surround the mountain?” said Henry rising, and imitating the labored but rapid progress of his companion; “remember they have foot as well as horse, and, at any rate, we shall starve in the hills.”

“Fear nothing, Captain Wharton,” returned the peddler with confidence; “this is not the mountain that I would be on, but necessity has made me a dexterous pilot among these hills. I will lead you where no man will dare to follow.”

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## CHAPTER XXI.

### FRANCES REMINDS MR. HARPER OF HIS PROMISE.

Frances could no longer doubt that the figure she had seen on the hill was Birch, and she felt certain that, instead of flying to the friendly forces below, her brother would be taken to the mysterious hut to pass the night. Therefore she held a long and animated discussion with her aunt; when the good spinster reluctantly yielded to the representation of her niece, and folding her in her arms, she kissed the cold cheek and fervently blessing her allowed her to depart on an errand of fraternal love.

The night had set in dark and chilling as Frances Wharton, with a beating heart but light step, moved through the little garden that lay behind the farm-house which had been her brother's prison, and took her way to the foot of the mountain, where she had seen the figure of him she supposed to be the peddler.

Without pausing to reflect, however, she flew over the ground with a rapidity that seemed to bid defiance to all impediments, nor stopped even to breathe, until she had gone half the distance to the rock that she had marked as the spot where Birch made his appearance on that very morning.

When she heard the footsteps of a horse moving slowly up the road, she shrank timidly into a little thicket of wood which grew around the spring that bubbled from the side of a hillock near her. Frances listened anxiously to the retreating footsteps of the horse; and, as they died upon her ear, she ventured from her place of secrecy and advanced a short distance into the field, where, startled at the gloom and appalled with the dreariness of the prospect, she paused to reflect on what she had undertaken.

Throwing back the hood of her cardinal,<sup>[121]</sup> she sought the support of a tree and gazed towards the summit of the mountain that was to be the goal of

her enterprise. It rose from the plain like a huge pyramid, giving nothing to the eye but its outlines.

Frances turned her looks towards the east, in earnest gaze at the clouds which constantly threatened to involve her again in comparative darkness. Had an adder stung her, she could not have sprung with greater celerity than she recoiled from the object against which she was leaning, and which she had for the first time noticed. The two upright posts, with a cross-beam on their tops and a rude platform beneath, told but too plainly the nature of the structure; even the cord was suspended from an iron staple, and was swinging to and fro in the night air. Frances hesitated no longer, but rather flew than ran across the meadow, and was soon at the base of the rock, where she hoped to find something like a path to the summit of the mountain. She soon found a sheep-path that wound round the shelving rocks and among the trees.

Nearly an hour did she struggle with the numerous difficulties that she was obliged to overcome; when, having been repeatedly exhausted with her efforts, and, in several instances, in great danger from falls, she succeeded in gaining the small piece of table-land on the summit.

No hut nor any vestige of human being could she trace. The idea of her solitude struck on the terrified mind of the affrighted girl, and approaching to the edge of a shelving rock she bent forward to gaze on the signs of life in the vale; when a ray of keen light dazzled her eyes, and a warm ray diffused itself over her whole frame. Recovering from her surprise, Frances looked on the ledge beneath her, and at once perceived that she stood directly over the object of her search. A hole through its roof afforded a passage to the smoke which, as it blew aside, showed her a clear and cheerful fire crackling and snapping on a rude hearth of stone. The approach to the front of the hut was by a winding path around the point of the rock on which she stood, and by this she advanced to its door.

Three sides of this singular edifice were composed of logs laid alternately on each other, to a little more than the height of a man, and the fourth was formed by the rock against which it leaned. The roof was made of the bark of trees, laid in long strips from the rock to its eaves; the fissures<sup>[122]</sup>

between the logs had been stuffed with clay, which in many places had fallen out, and dried leaves were made use of as a substitute to keep out the wind. A single window of four panes of glass was in front, but a board carefully closed it in such a manner as to emit no light from the fire within. After pausing some time to view this singularly constructed hiding-place, for such Frances knew it to be, she applied her eye to a crevice to examine the inside.

There was no lamp or candle, but the blazing fire of dry wood made the interior of the hut light enough to read by. In one corner lay a bed of straw with a pair of blankets thrown carelessly over it, as if left where they had last been used.

In an angle against the rock and opposite to the fire which was burning in the other corner, was an open cupboard, that held a plate or two, a mug, and the remains of some broken meat.

Before the fire was a table, with one of its legs fractured, and made of rough boards; these, with a single stool, composed the furniture—if we except a few articles of cooking. A book that, by its size and shape, appeared to be a Bible, was lying on the table unopened. But it was the occupant of the hut in whom Frances was chiefly interested. This was a man, sitting on the stool, with his head leaning on his hand in such a manner as to conceal his features, and deeply occupied in examining some open papers. On the table lay a pair of curiously and richly mounted horseman's pistols, and the handle of a sheathed rapier,<sup>[123]</sup> of exquisite workmanship, protruded from between the legs of the gentleman, one of whose hands carelessly rested on its guard. The tall stature of this unexpected tenant of the hut, and his form, much more athletic than that of either Harvey or her brother, told Frances, without the aid of his dress, that it was neither of those she sought. A close surtout<sup>[124]</sup> was buttoned high in the throat of the stranger, and parting at the knees showed breeches of buff, with military boots and spurs. His hair was dressed so as to expose the whole face, and, after the fashion of that day, it was profusely powdered. A round hat was laid on the stones that formed a paved floor to the hut, as if to make room for a large map which, among other papers, occupied the table.

This was an unexpected event to our adventurer. She had been so confident that the figure twice seen was the peddler, that, on learning his agency in her brother's escape, she did not in the least doubt of finding them both in the place, which, she now discovered, was occupied by another and a stranger. She stood, earnestly looking through the crevice, hesitating whether to retire, or to wait with the expectation of yet meeting Henry, as the stranger moved his hand from before his eyes and raised his face, apparently in deep musing, when Frances instantly recognized the benevolent and strongly marked, but composed features of Harper.

All that Dunwoodie had said of his power and disposition, all that he himself had promised her brother, and all the confidence that had been created by his dignified and paternal manner, rushed across the mind of Frances, who threw open the door of the hut, and falling at his feet, clasping his knees with her arms, as she cried: "Save him, save him—save my brother; remember your promise, and save him!"

Harper had risen as the door opened, and there was a slight movement of his hand towards his pistols; but it was cool, and instantly checked. He raised the hood of the cardinal, which had fallen over her features, and exclaimed with some uneasiness:

"Miss Wharton! But you cannot be alone?"

"There is none here but my God and you; and by his sacred name, I conjure you to remember your promise, and save my brother!"

Harper gently raised her from her knees and placed her on the stool, begging her at the same time to be composed, and to acquaint him with the nature of her errand. This Frances instantly did, and after a short pause added:

"We can depend much on the friendship of Major Dunwoodie; but his sense of honor is so pure, that—that—notwithstanding his—his—feelings—his desire to serve us—he will conceive it to be his duty to apprehend<sup>[125]</sup> my brother again. Besides, he thinks there will be no danger in so doing, as he relies greatly on your interference."

“On mine?” said Harper, who appeared slightly uneasy.

“Yes, on yours. When we told him of your kind language, he at once assured us all that you had the power, and, if you had promised, would have the inclination, to procure Henry’s pardon.”

“Said he more?” asked Harper.

“Nothing but reiterate assurances of Henry’s safety; even now he is in quest of you.”

“Miss Wharton, that I bear no mean part in the unhappy struggle between England and America, it might now be useless to deny. You owe your brother’s escape, this night, to my knowledge of his innocence, and the remembrance of my word. Major Dunwoodie is mistaken when he says that I might openly have procured his pardon. I now, indeed, can control his fate, and I pledge to you a word which has some influence with Washington, that means shall be taken to prevent his recapture. But from you, also, I exact a promise, that this interview, and all that has passed between us, remain confined to your own bosom, until you have my permission to speak upon the subject.”

Frances gave the desired assurance, and he continued:

“The peddler and your brother will soon be here, but I must not be seen by the royal officer, or the life of Birch might be the forfeiture.”<sup>[126]</sup>

“Never!” cried Frances, ardently; “Henry never could be so base as to betray the man who saved him.”

“It is no childish game we are now playing, Miss Wharton. Men’s lives and fortunes hang upon slender threads, and nothing must be left to accident that can be guarded against.”

While Harper was speaking he carefully rolled up the map he had been studying, and placed it, together with sundry papers that were open, in his pocket. He was still occupied in this manner, when the voice of the peddler, talking in unusually loud tones, was heard directly over their heads.

“Stand farther this way, Captain Wharton, and you can see the tents in the moonshine. But let them mount and ride; I have a nest here that will hold us both, and we will go in at our leisure.”

“And where is this nest? I confess that I have eaten but little the last two days, and I crave some of the cheer you mention.”

“Hem!” said the peddler, exerting his voice still more, “hem!—this fog has given me a cold; but move slow, and be careful not to slip, or you may land on the bayonet of the sentinel on the flats; ’tis a steep hill to rise, but one can go down it with ease.”

Harper pressed his finger on his lip, to remind Frances of her promise, and taking his pistols and hat, so that no vestige of his visit remained, he retired deliberately to the far corner of the hut, where, lifting several articles of clothing, he entered a recess in the rock, and letting them fall again was hid from view. Frances noticed, by the strong firelight, as he entered, that it was a natural cavity, and contained nothing but a few more articles of domestic use.

The surprise of Henry and the peddler, on entering and finding Frances in possession of the hut, may be easily imagined. Without waiting for explanations or questions, the warm-hearted girl flew into the arms of her brother, and gave vent to her emotions in tears. But the peddler seemed struck with different feelings. His first look was at the fire, which had been recently supplied with fuel; he then drew open a small drawer of the table, and looked a little alarmed at finding it empty.

“Are you alone, Miss Fanny?” he asked in a quick voice; “you did not come here alone?”

“As you see me, Mr. Birch,” said Frances, raising herself from her brother’s arms, and turning an expressive glance towards the secret cavern, that the quick eye of the peddler instantly understood.

“But why and wherefore are you here?” exclaimed her astonished brother; “and how knew you of this place at all?”

Frances entered at once into a brief detail of what had occurred at the house since their departure, and the motives which induced her to seek them.

“But,” said Birch, “why follow us here, when we were left on the opposite hill?”

Frances related the glimpse she had caught of the hut and the peddler, in her passage through the Highlands, and her immediate conjecture that the fugitives would seek shelter of this habitation for the night.

The peddler seemed satisfied; for he drew back, and watching his opportunity, unseen by Henry, slipped behind the screen, and entered the cavern.

Frances and her brother, who thought his companion had passed through the door, continued conversing on the latter’s situation for several minutes, when the former urged the necessity of expedition on his part, in order to precede Dunwoodie, from whose sense of duty they knew they had no escape. The captain took out his pocket-book, and wrote a few lines with his pencil; then folding the paper, he handed it to his sister.

“Frances,” he said, “you have this night proved yourself to be an incomparable woman. As you love me, give that unopened letter to Dunwoodie, and remember that two hours may save my life.”

“I will—I will; but why delay? Why not fly, and improve these precious moments?”

“Your sister says well, Captain Wharton,” exclaimed Harvey, who had reëntered unseen; “we must go at once. Here is food to eat as we travel.”

“But who is to see this fair creature in safety?” cried the captain. “I can never desert my sister in such a place as this.”

“Leave me! leave me!” said Frances; “I can descend as I came up. Do not doubt me; you know not my courage nor my strength.”

“Captain Wharton,” said Birch, throwing open the door, “you can trifle with your own lives, if you have many to spare; I have but one, and must nurse

it. Do I go alone, or not?”

“Go, go, dear Henry!” said Frances, embracing him; “go! Remember our father; remember Sarah.” She waited not for his answer, but gently forced him through the door, and closed it with her own hands.

For a short time there was a warm debate between Henry and the peddler; but the latter finally prevailed, and the breathless girl heard the successive plunges as they went down the side of the mountain at a rapid rate.

Immediately after the noise of their departure had ceased, Harper reappeared. He took the arm of Frances in silence, and led her from the hut and down the mountain.

Wondering who this unknown but powerful friend of her brother could be, Frances glided across the fields, and using due precautions in approaching the dwelling, regained her residence undiscovered and in safety.

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## CHAPTER XXII.

### DUNWOODIE GAINS HIS SUIT, AND CAPTAIN WHARTON HIS FREEDOM.

On joining Miss Peyton, Frances learnt that Dunwoodie was not yet returned; although, with a view to relieve Henry from the importunities of the supposed fanatic, he had desired a very respectable divine of their own church to ride up from the river and offer his services. This gentleman was already arrived.

To the eager inquiries of Miss Peyton, relative to her success in her romantic excursion, Frances could say no more than that she was bound to be silent, and to recommend the same precaution to the good maiden also. There was a smile playing around the beautiful mouth of Frances, while she uttered this injunction, which satisfied her aunt that all was as it should be. She was urging her niece to take some refreshment after her fatiguing expedition, when the noise of a horseman riding to the door announced the return of the major. The heart of Frances bounded as she listened to his approaching footsteps. She, however, had not time to rally her thoughts before he entered.

The countenance of Peyton was flushed, and an air of vexation and disappointment pervaded his manner.

“’Twas imprudent, Frances! nay, it was unkind,” he cried, throwing himself in a chair, “to fly at the very moment that I had assured him of safety! There was no danger impending. He had the promise of Harper, and it is a word never to be doubted. Oh! Frances! Frances! had you known the man, you would never have distrusted his assurance, nor would you have again reduced me to the distressing alternative.”

“What alternative?” asked Frances, pitying his emotions deeply, but eagerly seizing upon every circumstance to prolong the interview.

“What alternative! Am I not compelled to spend this night in the saddle to recapture your brother, when I had thought to lay my head on its pillow, with the happy consciousness of having contributed to his release?”

She bent toward him, and timidly took one of his hands, while with the other she gently removed the curls from his burning brow. “Why go at all, dear Peyton?” she asked; “you have done much for your country, and she cannot exact such a sacrifice as this at your hand.”

“Frances! Miss Wharton!” exclaimed the youth, springing on his feet and pacing the floor with a cheek that burned through its brown covering, and an eye that sparkled with wounded integrity; “it is not my country, but my honor, that requires the sacrifice. Has he not fled from a guard of my own corps?”

“Peyton, dear Peyton,” said Frances, “would you kill my brother?”

“Would I not die for him?” exclaimed Dunwoodie, as he turned to her more mildly. “You know I would; but I am distracted with the cruel surmise to which this step of Henry’s subjects me. Frances, I leave you with a heavy heart; pity me, but feel no concern for your brother; he must again become a prisoner, but every hair of his head is sacred.”

“Stop! Dunwoodie, I conjure you,” cried Frances, gasping for breath, as she noticed that the hand of the clock still wanted many minutes to the desired hour; “before you go on your errand of fastidious<sup>[127]</sup> duty, read this note that Henry has left for you, and which, doubtless, he thought he was writing to the friend of his youth.”

“Where got you this note?” exclaimed the youth, glancing his eyes over its contents. “Poor Henry, you are indeed my friend! If any one wishes me happiness, it is you.”

“He does, he does,” cried Frances, eagerly; “he wishes you every happiness. Believe it; every word is true.”

“I do believe him, lovely girl, and he refers me to you for its confirmation. Would that I could trust equally to your affections!”

“You may, Peyton,” said Frances, looking up with innocent confidence to her lover.

“Then read for yourself, and verify your words,” interrupted Dunwoodie, holding the note towards her.

Frances received it in astonishment, and read the following:

“Life is too precious to be trusted to uncertainties. I leave you, Peyton, unknown to all but Cæsar, and I recommend him to your mercy. But there is a care that weighs me to the earth. Look at my aged and infirm parent. He will be reproached for the supposed crime of his son. Look at those helpless sisters that I leave behind me without a protector. Prove to me that you love us all. Let the clergyman whom you will bring with you unite you this night to Frances, and become at once brother, son, and husband.”

The paper fell from the hands of Frances, and she endeavored to raise her eyes to the face of Dunwoodie, but they sank abashed to the floor.

“Speak, Frances,” murmured Dunwoodie; “may I summon my good kinswoman? Determine, for time presses.”

“Stop, Peyton! I cannot enter into such a solemn engagement with a fraud upon my conscience. I have seen Henry since his escape, and time is all-important to him. Here is my hand; if, with this knowledge of the consequences of delay, you will not reject it, it is freely yours.”

“Reject it!” cried the delighted youth; “I take it as the richest gift of Heaven. There is time enough for us all. Two hours will take me through the hills; and at noon to-morrow I will return with Washington’s pardon for your brother, and Henry will help to enliven our nuptials.”<sup>[128]</sup>

“Then meet me here in ten minutes,” said Frances, greatly relieved by unburdening her mind, and filled with the hope of securing Henry’s safety, “and I will return and take those vows which will bind me to you forever.”

Dunwoodie paused only to press her to his bosom, and flew to communicate his wishes to the priest.

Dunwoodie and the clergyman were soon there. Frances, silently, and without affectation<sup>[129]</sup> of reserve, placed in his hand the wedding-ring of her own mother, and after some little time spent in arranging Mr. Wharton and herself, Miss Peyton suffered the ceremony to proceed.

The clock stood directly before the eyes of Frances, and she turned many an anxious glance at the dial; but the solemn language of the priest soon caught her attention, and her mind became intent upon the vows she was uttering. The ceremony was quickly over, and as the clergyman closed the words of benediction the clock told the hour of nine. This was the time that was deemed so important, and Frances felt as if a mighty load was at once removed from her heart.

The noise of a horseman was heard approaching the house, and Dunwoodie was yet taking leave of his bride and aunt, when an officer was shown into the room by his own man.

The gentleman wore the dress of an aid-de-camp, and the major knew him to be one of the military family of Washington.

“Major Dunwoodie,” he said, after bowing to the ladies, “the commander-in-chief has directed me to give you these orders.”

He executed his mission, and, pleading duty, took his leave immediately.

“Here, indeed,” cried the major, “is an unexpected turn in the whole affair. But I understand it: Harper has got my letter, and already we feel his influence.”

“Have you news affecting Henry?” cried Frances, springing to his side.

“Listen, and you shall judge.”

“Sir,—Upon the receipt of this, you will concentrate your squadron, so as to be in front of a covering party which the enemy has sent up in front of his foragers, by ten o’clock to-

morrow on the heights of Croton,<sup>[130]</sup> where you will find a body of foot to support you. The escape of the English spy has been reported to me, but his arrest is unimportant, compared with the duty I now assign you. You will, therefore, recall your men, if any are in pursuit, and endeavor to defeat the enemy forthwith. Your obedient servant,

“GEO. WASHINGTON.”

“Thank God!” cried Dunwoodie, “my hands are washed of Henry’s recapture; I can now move to my duty with honor.”

“And with prudence, too, dear Peyton,” said Frances, with a face as pale as death. “Remember, Dunwoodie, you leave behind you claims on your life.”

The youth dwelt on her lovely but pallid features with rapture, and, as he folded her to his heart, exclaimed:

“For your sake I will, lovely innocent!” Frances sobbed a moment on his bosom, and he tore himself from her presence.

The peddler and his companion soon reached the valley, and, after pausing to listen, and hearing no sounds which announced that pursuers were abroad, they entered the highway. After walking at a great rate for three hours they suddenly diverged from the road, which inclined to the east, and held their course directly across the hills in a due south direction. This movement was made, the peddler informed his companion, in order to avoid the parties who constantly patrolled in the southern entrance of the Highlands, as well as to shorten the distance by travelling in a straight line.

The peddler became more guarded in the manner in which they proceeded, and took divers precautions to prevent meeting any moving parties of the Americans.

A steep and laborious ascent brought them from the level of the tide-waters to the high lands that form, in this part of the river, the eastern banks of the Hudson. The day was now opened, and objects could be seen in the distance with distinctness. To Henry and the peddler the view displayed only the

square yards and lofty masts of a vessel of war riding a few miles below them.

“There, Captain Wharton,” said the peddler—“there is a safe resting-place for you; America has no arm that can reach you if you gain the deck of that ship.”

By following the bank of the river, Birch led the way free from observation until they reached a point opposite to the frigate,<sup>[131]</sup> when, by making a signal, a boat was induced to approach.

Some time was spent and much precaution used before the seamen would trust themselves ashore; but Henry having finally succeeded in making the officer in command of the party credit his assertions, he was able to rejoin his companions in arms in safety.

Before taking leave of Birch, the captain handed him his purse, which was tolerably well supplied for the times.

The boat pulled from the shore, and Birch turned on his heel, drawing his breath like one relieved, and shot up the hills with the strides for which he was famous.

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## CHAPTER XXIII.

### WASHINGTON'S LAST MEETING WITH THE SPY.

It was at the close of a stormy day in September that a large assemblage of officers was collected near the door of a building that was situated in the heart of the American troops, who held the Jerseys. The age, the dress, and the dignity of deportment of most of these warriors indicated them to be of high rank, but to one in particular was paid a deference<sup>[132]</sup> and obedience that announced him to be of the highest. His dress was plain, but it bore the usual military distinctions of command. He was mounted on a noble steed of a deep bay, and a group of young men, in gayer attire, evidently awaited his pleasure and did his bidding. Many a hat was lifted as its owner addressed this officer, and when he spoke, a profound attention, exceeding the respect of mere professional etiquette,<sup>[133]</sup> was exhibited on every countenance. At length the general raised his own hat and bowed gravely to all around him. The salute was returned, and the party dispersed, leaving the officer without a single attendant except his body servants and one aid-de-camp. Dismounting, he stepped back a few paces, and for a moment viewed the condition of his horse with the eye of one who well understood the animal; then, casting a brief but expressive glance at his aid, he retired into the building, followed by that gentleman.

On entering the apartment that was apparently fitted for his reception, he took a seat, and continued for a long time in a thoughtful attitude, like one in the habit of communing much with himself. During this silence, the aid-de-camp stood in expectation of orders. At length the general raised his eyes, and spoke in those low, placid tones that seemed natural to him:

“Has the man I wished to see arrived, sir?”

“He waits the pleasure of your excellency.”

“I will receive him here, and alone, if you please.”

The aid bowed and withdrew. In a few minutes the door again opened, and a figure, gliding into the apartment, stood modestly at a distance from the general, without speaking. His entrance was unheard by the officer, who sat gazing at the fire, still absorbed in his own meditations. Several minutes passed, when he spoke to himself in an undertone:

“To-morrow we must raise the curtain, and expose our plans. May Heaven prosper them!”

“Harvey Birch,” he said, turning to the stranger, “the time has arrived when our connection must cease; henceforth and forever we must be strangers.”

The peddler dropped the folds of the great-coat that concealed his features, and gazed for a moment earnestly at the face of the speaker; then, dropping his head upon his bosom, he said, meekly:

“If it be your excellency’s pleasure.”

“It is necessary. Since I have filled the station which I now hold, it has become my duty to know many men who, like yourself, have been my instruments in procuring intelligence. You have I trusted more than all; I early saw in you a regard to truth and principle that, I am pleased to say, has never deceived me. You alone know my secret agents in the city, and on your fidelity depend, not only their fortunes, but their lives.”

He paused, as if to reflect in order that full justice might be done to the peddler, and then continued:

“I believe you are one of the very few that I have employed who have acted faithfully to our cause; and, while you have passed as a spy of the enemy, have never given intelligence that you were not permitted to divulge. To me, and to me only of all the world, you seem to have acted with strong attachment to the liberties of America.”

During this address, Harvey gradually raised his head from his bosom, until it reached the highest point of elevation; a faint tinge gathered in his cheeks, and, as the officer concluded, it was diffused over his whole countenance in

a deep glow, while he stood, proudly swelling with his emotions, but with eyes that modestly sought the feet of the speaker.

“It is now my duty to pay you for these services; hitherto you have postponed receiving your reward, and the debt has become a heavy one. I wish not to undervalue your dangers; here are a hundred doubloons;<sup>[134]</sup> you will remember the poverty of our country, and attribute to it the smallness of your pay.”

The peddler raised his eyes to the countenance of the speaker; but, as the other held forth the money, he moved back, as if refusing the bag.

“It is not much for your services and risks, I acknowledge,” continued the general, “but it is all that I have to offer; at the end of the campaign it may be in my power to increase it.”

“Does your excellency think that I have exposed my life and blasted my character for money?”

“If not for money, what then?”

“What has brought your excellency into the field? For what do you daily and hourly expose your precious life to battle and the halter? What is there about me to mourn, when such men as you risk their all for our country? No, no, no—not a dollar of your gold will I touch; poor America has need of it all.”

The bag dropped from the hand of the officer, and fell at the feet of the peddler, where it lay neglected during the remainder of the interview. The officer looked steadily at the face of his companion, and continued:

“You will soon be old; the prime of your days is already past; what have you to subsist on?”

“These!” said the peddler, stretching forth his hands, that already were embrowned with toil.

“But those may fail you; take enough to secure a support to your age. Remember your risks and care. I have told you that the characters of men

who are much esteemed in life depend on your secrecy; what pledge can I give them of your fidelity?"

"Tell them," said Birch, advancing and unconsciously resting one foot on the bag—"tell them that I would not take the gold!"

The composed features of the officer relaxed into a smile of benevolence, and he grasped the hand of the peddler firmly.

"Now, indeed, I know you; and although the same reasons which have hitherto compelled me to expose your valuable life will still exist, and may prevent my openly asserting your character, in private I can always be your friend. Fail not to apply to me when in want or suffering, and so long as God giveth to me, so long will I freely share with a man who feels so nobly and acts so well. If sickness or want should ever assail you, and peace once more smile upon our efforts, seek the gate of him whom you have so often met as Harper, and he will not blush to acknowledge you in his true character."

"It is little that I need in this life," said Harvey; "so long as God gives me health and honest industry, I can never want in this country; but to know that your excellency is my friend, is a blessing that I prize more than all the gold of England's treasury."

The officer stood for a few moments in the attitude of intense thought. He then drew to him the desk, and wrote a few lines on a piece of paper, and gave it to the peddler.

"That Providence destines this country to some great and glorious fate I must believe, while I witness the patriotism that pervades the bosoms of her lowliest citizens," he said. "It must be dreadful to a mind like yours to descend into the grave branded as a foe to liberty; but you already know the lives that would be sacrificed, should your real character be revealed. It is impossible to do you justice now, but I fearlessly entrust you with this certificate; should we never meet again, it may be serviceable to your children."

“Children!” exclaimed the peddler. “Can I give to a family the infamy of my name?”

The officer gazed at the strong emotion he exhibited with pain, and he made a slight movement towards the gold; but it was arrested by the expression of his companion’s face. Harvey saw the intention, and shook his head, as he continued more mildly:

“It is, indeed, a treasure that your excellency gives me; it is safe, too. There are men living who could say that my life was nothing to me, compared to your secrets. The paper that I told you was lost I swallowed when taken last by the Virginians. It was the only time I ever deceived your excellency, and it shall be the last. Yes, this is, indeed, a treasure to me. Perhaps,” he continued, with a melancholy smile, “it may be known after my death who was my friend; but if it should not, there are none to grieve for me.”

“Remember,” said the officer, with strong emotion, “that in me you will always have a secret friend; but openly I cannot know you.”

“I know it, I know it,” said Birch; “I knew it when I took the service. ’Tis probably the last time that I shall ever see your excellency. May God pour down his choicest blessings on your head!” He paused, and moved towards the door. The officer followed him with eyes that expressed deep interest. Once more the peddler turned, and seemed to gaze on the placid but commanding features of the general with regret and reverence, and then, bowing low, withdrew.

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## CHAPTER XXIV.

### DEATH OF THE SPY.—A REVELATION.

It was thirty-three years after the interview which we have just related that an American army was once more arrayed against the troops of England; but the scene was transferred from the banks of the Hudson to those of the Niagara.<sup>[135]</sup>

It was the evening of the 25th of July of that bloody year, when two young officers were seen standing on the table-rock, contemplating the great cataract with an interest that seemed to betray that they were gazing for the first time at the wonder of the western world. A profound silence was observed by each, until the companion of the officer suddenly started, and pointing eagerly with his sword into the abyss<sup>[136]</sup> beneath, exclaimed:

“See, Wharton, there is a man crossing in the very eddies of the cataract, and in a skiff no bigger than an egg-shell.”

“He has a knapsack—it is probably a soldier,” returned the other. “Let us meet him at the ladder, Mason, and learn his tidings.”

Some time was expended in reaching the spot where the adventurer was intercepted. Contrary to the expectations of the young soldiers, he proved to be a man far advanced in life, and evidently no follower of the camp.

A few words of salutation, and, on the part of the young men, of surprise that one so aged should venture so near the whirlpools of the cataract, were exchanged, when the old man inquired, with a voice that began to manifest the tremor of age, the news from the contending armies.

“We whipped the red-coats here the other day, among the grass on the Chippewa<sup>[137]</sup> plains,” said the one who was called Mason.

“Perhaps you have a son among the soldiers,” said his companion, with a milder demeanor,<sup>[138]</sup> and an air of kindness; “if so, tell me his name and regiment, and I will take you to him.”

The old man shook his head, and answered:

“No; I am alone in the world!”

“You should have added, Captain Dunwoodie,” cried his careless comrade, “if you could find either; for nearly half our army has marched down the road, and may be, by this time, under the walls of Fort George,<sup>[139]</sup> for anything that we know to the contrary.”

The old man stopped suddenly, and looked earnestly from one of his companions to the other; the action being observed by the soldiers, they paused also.

“Did I hear right?” the stranger uttered, raising his hand to screen his eyes from the rays of the setting sun. “What did he call you?”

“My name is Wharton Dunwoodie,” replied the youth, smiling.

The stranger motioned silently for him to remove his hat, which the youth did accordingly, and his fair hair blew aside like curls of silk, and opened the whole of his ingenuous countenance to the inspection of the other.

“’Tis like our native land!” exclaimed the old man with vehemence; “improving with time. God has blessed both.”

“Why do you stare thus, Lieutenant Mason?” cried Captain Dunwoodie, laughing a little; “you show more astonishment than when you saw the falls.”

“Oh, the falls! they are a thing to be looked at on a moon-shiny night, by your aunt Sarah and that gay old bachelor, Colonel Singleton.”

“Come, come, Tom, no jokes about my good aunt, I beg; she is kindness itself; and I have heard it whispered that her youth was not altogether happy.”

“Why, as to rumor,” said Mason, “there goes one in Accomac, that Colonel Singleton offers himself to her regularly every Valentine’s Day; and there are some who add that your old great-aunt helps his suit.”

“Aunt Jeanette!” said Dunwoodie, laughing; “dear, good soul, she thinks but little of marriage in any shape, I believe, since the death of Dr. Sitgreaves.”

“The last time I was at General Dunwoodie’s plantation, that yellow, sharp-nosed housekeeper of your mother’s took me into the pantry, and said that the colonel was no despicable match, as she called it.”

“Quite likely,” returned the captain; “Katy Haynes is no bad calculator.”

The old man listened to each word as it was uttered, with the most intense interest; but, toward the conclusion of the dialogue, the earnest attention of his countenance changed to a kind of inward smile. Mason paid but little attention to the expression of his features, and continued:

“To me she is selfishness embodied.”

“Her selfishness does but little harm,” returned Dunwoodie. “One of her greatest difficulties is her aversion to the blacks. She says that she never saw but one that she liked.”

“And who was he?”

“His name was Cæsar; he was a house-servant of my late grandfather Wharton. My mother always speaks of him with great affection. Both Cæsar and Katy came to Virginia with my mother when she married. My mother was——”

“An angel!” interrupted the old man, in a voice that startled the young soldiers by its abruptness and energy.

“Did you know her?” cried the son, with a glow of pleasure on his cheek.

The reply of the stranger was interrupted by sudden and heavy explosions of artillery, which were immediately followed by continued volleys of

small-arms, and in a few minutes the air was filled with the tumult of a warm and well-contested battle.

Everything in the American camp announced an approaching struggle. The troops were in motion, and a movement made to support the division of the army which was already engaged. Night had set in before the reserve and irregulars reached the foot of Lundy's Lane,<sup>[140]</sup> a road that diverged from the river and crossed a conical eminence at no great distance from the Niagara highway. The summit of the hill was crowned with the cannon of the British, and in the flat beneath was the remnant of Scott's<sup>[141]</sup> gallant brigade, which for a long time had held an unequal contest with distinguished bravery. A new line was interposed, and one column of the Americans directed to charge the hill, parallel to the road. This column took the English in flank, and bayoneting their artillerists, gained possession of the cannon. They were immediately joined by their comrades, and the enemy was swept from the hill.

But large reënforcements were joining the English general momentarily, and their troops were too brave to rest easy under defeat. Repeated and bloody charges were made to recover the guns, but in all they were repulsed with slaughter. During the last of these struggles, the ardor of the youthful captain whom we have mentioned urged him to lead his men some distance in advance, to scatter a daring party of the enemy. He succeeded, but in returning to the line missed his lieutenant from the station that he ought to have occupied. Soon after this repulse, which was the last, orders were given to the shattered troops to return to the camp. The British were nowhere to be seen, and preparations were made to take in such of the wounded as could be moved.

At this moment Wharton Dunwoodie, impelled by affection for his friend, seized a lighted fusee,<sup>[142]</sup> and taking two of his men, went himself in quest of his body, where he was supposed to have fallen.

Mason was found on the side of the hill, seated with great composure, but unable to walk from a fractured leg. Dunwoodie saw and flew to the side of his comrade, exclaiming:

“Ah! dear Tom, I knew I should find you the nearest man to the enemy.”

“Softly, softly; handle me tenderly,” replied the lieutenant. “No; there is a brave fellow still nearer than myself, and who he can be I know not. He rushed out of our smoke, near my platoon, to make a prisoner or some such thing, but, poor fellow, he never came back; there he lies just over the hillock. I have spoken to him several times, but I fancy he is past answering.”

Dunwoodie went to the spot, and to his astonishment beheld the stranger.

“It is the old man who knew my father and mother,” cried the youth; “for their sake he shall have honorable burial. Lift him, and let him be carried in; his bones shall rest on native soil.”

The men approached to obey. He was lying on his back, with his face exposed to the glaring light of the fusee; his eyes were closed, as if in slumber; his lips, sunken with years, were slightly moved from their position, but it seemed more like a smile than a convulsion which had caused the change. A soldier’s musket lay near him; his hands were pressed upon his breast, and one of them contained a substance that glittered like silver. Dunwoodie stooped, and moving the limbs, perceived the place where the bullet had found a passage to his heart. The subject of his last care was a tin box, through which the fatal lead had gone; and the dying moments of the old man must have been passed in drawing it from his bosom. Dunwoodie opened it, and found a paper in which, to his astonishment, he read the following:

“Circumstances of political importance, which involve the lives and fortunes of many, have hitherto kept secret what this paper now reveals. Harvey Birch has for years been a faithful and unrequited<sup>[143]</sup> servant of his country. Though man does not, may God reward him for his conduct!

“GEO. WASHINGTON.”

It was the SPY OF THE NEUTRAL GROUND, who died as he had lived, devoted to his country, and a martyr to her liberties.



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## FOOTNOTES:

[1] The term “Continental” was applied to the army of the Colonies, to their Congress, to the money issued by Congress, etc.

[2] guesses.

[3] wrapper.

[4] declared.

[5] sharpness.

[6] eagerness.

[7] exactness in conduct.

[8] quickness and skill.

[9] centred upon one thing.

[10] looking at the surface only.

[11] love of gain.

[12] a door cut into halves, upper and lower.

[13] extreme.

[14] a British colonel.

[15] an American general; also spelled Sumter.

[16] a branch of the Broad, which is a branch of the Congaree River, South Carolina.

- [17] irons for supporting wood in a fire-place.
- [18] a village in Westchester County, north of the Harlem River.
- [19] White Plains.
- [20] regular troops, British.
- [21] with scorn.
- [22] readiness to converse.
- [23] British spy, captured near Tarrytown, and hanged near Tappan.
- [24] The glances conveyed a hidden meaning.
- [25] DeLancey was a British officer in command of the Cow-Boys (see note, p. 30).
- [26] overspread.
- [27] fears.
- [28] a bright red color.
- [29] open; frank.
- [30] defeated.
- [31] ended.
- [32] Long Island Sound.
- [33] waves.
- [34] readiness.
- [35] thinking.
- [36] entertaining guests without pay.
- [37] disturbed condition of mind.
- [38] a stringed instrument that is caused to sound by the impulse of the air.
- [39] fright.
- [40] from the side.
- [41] signs or motions.
- [42] very great.
- [43] using but few words.

[44] overcoat.

[45] change.

[46] on the Hudson, forty miles north of New York.

[47] is the duty of.

[48] to make easy.

[49] very hastily.

[50] trial.

[51] never to be loosened.

[52] free from blame.

[53] a mounted sentinel.

[54] These were Hessian soldiers (from Hesse-Cassel, in Germany) hired by Great Britain. The Cow-Boys were Americans enlisted as soldiers in the British army. On the next page they are referred to as the “refugee troop.”

[55] haughty.

[56] a noted park in London.

[57] changes in position.

[58] violent; fierce.

[59] that is, here, first lieutenant.

[60] inclination.

[61] threatening nature.

[62] It was a danger demanding immediate action.

[63] thinking quietly.

[64] foreshadowing something serious.

[65] search.

[66] lines of the face.

[67] They were known as “Skinners.”

[68] questions.

[69] fool.

[70] notes issued by the Continental Congress, worth but little.

[71] George III., King of England.

[72] little details.

- [73] departure (literally, *they go out*).
- [74] burial.
- [75] agreements.
- [76] forfeiting to the public treasury.
- [77] supporter of the American cause.
- [78] hard to suit.
- [79] falling into decay.
- [80] outburst.
- [81] quickness.
- [82] jocosely.
- [83] change of sentinel.
- [84] French aid was given the Americans.
- [85] Colonists, who favored the British.
- [86] counted.
- [87] whipping.
- [88] unsuccessful.
- [89] gentleness, kindness.
- [90] place of meeting.
- [91] murder by secret assault.
- [92] one not fighting.
- [93] risk or danger.
- [94] expressing one thing and meaning another.
- [95] covered with a decorated cloth.
- [96] upright windows built on a sloping roof.
- [97] exclaimed.
- [98] Sir Henry Clinton, commander of the English forces.
- [99] a procession of persons on horseback.
- [100] messenger.
- [101] a stronghold on the Hudson.
- [102] middle age.

- [103] name.
- [104] one who studies cases of conscience.
- [105] communication of disease by contact.
- [106] an American officer who was detected within the British lines in disguise.
- [107] General Nathanael Greene, a noted American commander.
- [108] William; a general in the American army, who organized the forces at Cambridge before the battle of Bunker Hill.
- [109] Alexander Hamilton, aide-de-camp to Washington.
- [110] wild and extravagant notions.
- [111] aversion, dislike.
- [112] refined—exalted.
- [113] a city of Switzerland.
- [114] read account in the book of Daniel (Bible).
- [115] not sincere.
- [116] very hungry.
- [117] surveying the situation with his eye.
- [118] medley.
- [119] with haste.
- [120] exciting fear.
- [121] a woman's short cloak.
- [122] clefts or openings.
- [123] sword.
- [124] overcoat.
- [125] arrest.
- [126] penalty.
- [127] She thought his sense of duty too exacting.
- [128] marriage.
- [129] pretence.
- [130] a river flowing into the Hudson about thirty-two miles above New York; high ground bordering on this river.
- [131] a ship of war.

[132] respect.

[133] forms required by good breeding.

[134] a former Spanish coin, worth about \$8.

[135] name of river and falls between New York and Canada.

[136] bottomless depth.

[137] a village in Canada, twenty-one miles northwest of Buffalo.

[138] manner.

[139] a fort on the Canada side of the Niagara River, where it flows into Lake Ontario.

[140] a road leading west from Niagara River, near Niagara Falls.

[141] General Winfield Scott, commander of the American forces.

[142] torch.

[143] unrewarded.

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